The Federated Republic

CONSTITUTION

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Article I — Individual Sovereignty and Rights

§1.1 — Right to Courts and Legal Remedy

Every person may seek legal remedy for any violation of their rights under this Constitution, whether by act or omission, before an independent and impartial court. This right is self-executing: where the Legislature has not funded adequate legal aid, courts appoint counsel at public expense. Procedural costs may not make the right to a remedy illusory.

§1.2 — Individual Sovereignty Floor

Every person possesses an inviolable sphere of personal sovereignty over their own life, body, and choices. Government authority operates outside this sphere. Where the boundary is disputed, the presumption runs in favor of individual liberty; government bears the burden of demonstrating constitutional authority.

§1.3 — Prohibition of Torture and Cruel Treatment

Torture and cruel, inhuman, or degrading treatment are absolutely prohibited. No person, wherever located, may be subjected to such treatment by an agent or officer of the Republic, nor by any person acting at the direction or with the acquiescence of the Republic.

§1.4 — Prohibition of Slavery and Forced Labor

Slavery, involuntary servitude, and forced labor are absolutely prohibited. Lawful criminal sentences, jury service, military conscription, and civil emergency duties required by law do not constitute forced labor. Labor for the benefit of a private party requires the person's consent.

§1.5 — Civil and Political Liberties

Every person holds the rights of expression, thought, conscience, religion, association, assembly, petition, and movement. Government may regulate the time, place, and manner of expression and assembly only as necessary for public order and without viewpoint discrimination. No government may compel expression, or suppress it directly or through intermediaries. Freedom of religion protects belief absolutely; it protects practice against limitation except where practice causes direct harm to others.

§1.6 — Equality and Non-Discrimination

Every person is equal before the law. Government may not discriminate on the basis of race, ethnicity, sex, sexual orientation, gender identity, religion, national origin, disability, age, or economic status. A distinction based on a listed characteristic requires compelling justification, except reasonable age standards and economic distinctions extending assistance to persons of lesser means. Other distinctions must be rationally related to a legitimate governmental purpose.

§1.7 — Privacy, Property, and Security of the Home

Every person holds the right to privacy and security in their person, home, communications, and data, and the right to own property. Government may not enter a home, search a person or property, surveil a person or communication, or collect data without consent or prior independent judicial authorization on specific, articulable grounds. This applies within the Republic's territory and to Republic citizens wherever located. Encryption is lawful and may not be prohibited. Property may be taken for public use only upon just compensation determined independently.

§1.8 — Democratic Participation

Every citizen, subject to constitutional eligibility requirements, has the right to vote, stand for office, participate in democratic processes, and have their vote counted. No governmental action whose purpose or substantial effect suppresses or reduces access to the franchise is valid. The Republic must make voting broadly accessible but may not compel voting.

§1.9 — Right to Bear Arms

Every person holds the right to keep and bear arms for lawful purposes, including self-defense. The Legislature and States may regulate the licensing, safety, type, transfer, and carry of arms, provided lawful ownership for self-defense remains available.

§1.10 — Habeas Corpus

Every person detained by public authority has the right to challenge that detention before an independent and impartial court. The detaining authority must produce the person and justify detention within the period established by statute, not to exceed 72 hours. No court may decline to hear an application for habeas corpus.

§1.11 — Rights of the Accused and Fair Trial

Every person accused of a criminal offense has the right to prompt notice of the charges; counsel, at public expense if unable to afford representation; adequate time and means to prepare a defense; examination of witnesses; silence without adverse inference; and a speedy trial. No person may receive a greater penalty solely for exercising the right to trial. Bail may be imposed only as reasonably necessary to ensure appearance or protect public safety and may not be punitive. The accused has the right to examine and challenge the evidence presented against them, including the methods used to produce it.

§1.12 — Right to a Public Trial

Every person accused of a criminal offense has the right to a public trial before an independent and impartial court. Proceedings and records may be closed or sealed only to the minimum extent and duration necessary to protect a compelling interest identified by the court. The grounds for closure or sealing must be published to the NRS, and continued secrecy remains subject to independent judicial review.

§1.13 — Freedom from Retroactive Criminal Law

No person may be convicted for conduct that was not criminal when committed, and no criminal law may otherwise be applied retroactively to the disadvantage of the accused.

§1.14 — Double Jeopardy

No person may be tried or punished twice for the same offense following final acquittal or conviction. Offenses are the same where they arise from the same conduct and the later charge requires no element distinct from the earlier charge. A State and the Republic may each prosecute the same conduct, but sentences run concurrently and only the greater term is served, with time served credited to both.

§1.14.a — Conduct Lawful in Another Jurisdiction

No State or Territory may impose criminal or civil liability on a person for conduct that was lawful where it occurred in another State or Territory, or for assisting such conduct or providing information about it.

§1.15 — Environmental Obligations

Government may not cause or systematically permit material environmental harm to persons or communities. The Legislature must establish environmental protections. Government must take reasonable measures proportionate to known or identifiable harms; this provision does not guarantee a particular environmental outcome.

§1.16 — Emergency Derogation

No emergency suspends the Individual Sovereignty Floor in full. Rights other than those protected by §1.16.a may be temporarily derogated only upon a declaration stating the emergency, rights affected, scope, and duration, published immediately to the NRS.

Either executive may issue a declaration within their domain for no more than 14 days. Continuation requires a statute with a fixed expiration. No declaration or authorization may be renewed or substantially repeated.

All emergency measures lapse automatically with their authorization. Every declaration receives mandatory expedited independent judicial review, and judicial remedies remain available.

The three Monitors retain full constitutional authority throughout any emergency.

§1.16.a — Non-Derogable Rights

These six rights are absolute: the prohibition on torture (§1.3); slavery (§1.4); habeas corpus (§1.10); the right to a public trial (§1.12); no retroactive punishment (§1.13); and non-refoulement (§1.18). No emergency measure may be applied in a discriminatory manner on the basis of race, ethnicity, sex, religion, national origin, sexual orientation, or gender identity; any such application is void.

§1.17 — Right to Seek Asylum

Every person who reaches the Republic's jurisdiction has the right to claim asylum and to an independent determination of that claim under §6.3. Manner of entry does not affect this right.

§1.18 — Non-Refoulement

No person, wherever located, may be returned, expelled, or extradited by the Republic, or by anyone acting at its direction or with its acquiescence, to any territory where they face genuine risk of persecution, torture, or deprivation of life. This protection applies regardless of the person's status, conduct, or the receiving government.

Article II — The Dual Executive

§2.1 — The Legat Consul — Domain and Term

To hold the office of Legat Consul, a person must have been a citizen for at least 7 years at the time of taking office. The Legat Consul holds authority over military command, force employment, foreign affairs, external intelligence (§2.3), trade agreements (§2.4), and indigenous nation relations (Article XVI). Operational decisions within this domain belong to the Legat Consul. The Legat Consul serves a four-year term. No person may serve more than 12 years as Legat Consul. A person who serves any portion of a term, by election or succession, may not seek election at the next election for that office. Upon term expiration, all authority transfers immediately to the incoming Legat Consul.

§2.2 — Military Authorization Framework

The Legat Consul may conduct military operations necessary to repel or prevent an active or imminent attack on the Republic's territory, citizens abroad, or treaty allies, including defensive operations beyond the Republic's borders where necessary to that purpose. Military operations pursuing other objectives require authorization by law within the purposes permitted by §14.1.

Upon initiating military action, the Legat Consul must notify the Civic Consul and the Speakers of both chambers, stating its purposes and grounds. The Civic Consul receives notice for the exercise of domestic responsibilities and does not thereby acquire authority to direct military operations. Following notification, the Legat Consul must submit to the Speaker of the Assembly the proposed operational timeline and budget for planned action. Operations beyond immediate defensive authority require an authorizing law supported by a proposed plan of action and budget.

The Senate may, by majority vote, direct that defensive military operations return to an alert posture where continued active operations are no longer justified by an active or imminent threat. Such a determination terminates authority for continued active defensive operations but does not restrict the Legat Consul's authority to respond immediately to a new or renewed active or imminent attack.

The Legat Consul exercises military command and determines strategy, tactics, and methods within constitutionally permitted defensive purposes or the purposes and scope authorized by law, subject to Article XIV.

§2.3 — Consular Intelligence

The Legat Consul directs external intelligence. No intelligence operation against Republic citizens, wherever located, may be conducted on the Legat Consul's authority; such operations require independent judicial authorization. The Legat Consul briefs the Senate on intelligence operations against foreign nationals outside Republic territory in the manner the Legat Consul and the Senate determine.

§2.3.a — Legat Consul Legislative Veto

The Legat Consul may veto legislation raising a genuine constitutional concern within the security domain — military operations, external intelligence, treaty obligations, or border security — by returning the bill within 10 business days of final passage with written grounds. The veto may be used once per bill; a bill repassed in a subsequent session proceeds without Legat Consul veto. Either Speaker may request an EM domain assessment. The Senate may override by 2/3 during that session; absent override, the bill lapses.

§2.4 — Legat Consul International Agreements

The Legat Consul negotiates and concludes treaties and trade agreements, subject to §3.6. The Legat Consul must consult the Civic Consul on trade and indigenous agreements bearing on domestic interests; the Civic Consul's response is advisory.

§2.4.a — Domain Officers

The Legat Consul may appoint domain officers to exercise defined authority. Officers are nominated by the Legat Consul and confirmed by the Senate. Statute defines offices, qualifications, acting service, and administration, but may not transfer, enlarge, or diminish the Legat Consul's constitutional authority. The Legat Consul may dismiss a domain officer; the Senate may remove one by majority of full seated membership.

§2.5 — The Civic Consul — Domain and Term

(1) The Civic Consul holds residual executive authority over functions not enumerated to the Legat Consul.

(2) No person may serve more than 12 years as Civic Consul. A person leaving the office may not serve again until one full Assembly electoral cycle passes.

(3) The Civic Consul's domestic authority includes domestic policy, regulatory frameworks, civic-domain budget preparation (§12.2), civil service, and social state administration (Article XII).

(4) The Civic Consul may declare a domestic emergency in response to natural disaster, public health crisis, or infrastructure failure, subject to Article I and Assembly oversight. The Assembly may terminate the declaration at any time. The Legat Consul has no authority in domestic emergencies except assistance under §2.14.b.

(5) The Civic Consul has the right to be informed on Legat domain matters creating domestic fiscal obligations or bearing on domestic interests. No classification or domain assertion may withhold such information.

(6) The Civic Consul appoints ministers to lead the civic domain, who serve at the Civic Consul's pleasure without confirmation. Portfolios are defined by statute. Upon a change of Consul, outgoing ministers remain in caretaker service to maintain existing policy until successors are appointed.

§2.6 — Constructive Vote of No Confidence

(1) The Civic Consul is accountable to the Assembly and may be removed only by a constructive vote of no confidence that simultaneously elects a named successor by absolute majority of the full seated Assembly. A vote not electing a successor has no effect. The vote is a political act not subject to judicial review.

(2) Only a serving Assembly member may be elected Civic Consul. Upon election, the Assembly seat becomes vacant. While serving, the Civic Consul may sit, speak, and be held to account in the Assembly but has no legislative vote and does not count toward quorum or voting thresholds.

(3) The Civic Consul serves until removal, resignation, or exhaustion of the service limit. Leaving office does not restore the vacated Assembly seat.

(4) An Acting Civic Consul is not removable under this section.

§2.6.a — Government Formation

(1) The Assembly elects the Civic Consul by absolute majority within the statutory period following a vacancy (constitutional default: 21 days).

(2) If the Assembly does not elect within that period, the Assembly Speaker becomes Acting Civic Consul by constitutional operation, with authority limited to maintaining existing policy. If there is no sitting Speaker, the most senior Assembly member by continuous service acts; ties are resolved by age.

(3) Bills passed during acting service are presented to the Acting Civic Consul, who may not exercise the §2.7 veto but may issue a reconsideration notice. The notice pauses the review period for 10 business days, during which the Assembly may withdraw the bill by simple majority.

(4) The Acting Civic Consul administers a nominating ballot of the Assembly. The ballot requires no quorum. Up to four candidates receiving the most votes advance; ties causing more than four to advance are resolved by continuous service, then age.

(5) The Elections Panel administers a national election within the statutory period (constitutional default: 45 days; absolute maximum: 90 days from the nominating ballot). Where more than one candidate advances, the election uses ranked-choice voting; where only one candidate advances, voters confirm or reject that candidate by a yes-or-no vote.

(6) The winner becomes Civic Consul; acting service ends upon installation.

If no candidate is elected, the nomination and election process repeats.

(7) Before the national election begins, the Assembly may elect a Civic Consul by absolute majority, terminating the fallback. Once the national election begins, it proceeds to conclusion.

§2.7 — Civic Consul Legislative Instruments

The Civic Consul may, within 10 business days of final passage, return a bill with written grounds. The bill is suspended for one month, during which the Senate may override by 2/3. If not overridden, the bill returns to the Legislature and must pass both chambers again; upon repassage it is not subject to another Civic Consul veto.

Within the review period, the Civic Consul may issue a reconsideration notice identifying provisions for revision or deletion. The Assembly Speaker may pause the review period for up to 10 business days, during which the Assembly may withdraw the bill by simple majority. If not withdrawn, the review period resumes. A reconsideration notice may be issued once per bill and is unavailable for emergency legislation.

Both Consuls review concurrently. A bill neither Consul vetoes within its review period becomes law. The veto is unavailable for the annual budget, legislation implementing a constitutional obligation, or emergency legislation. A bill is emergency legislation only when so designated at final passage by a 2/3 vote of the full seated membership of both chambers.

§2.8 — Duty of Refusal

No civil servant, military member, or person exercising federal authority may comply with an executive order requiring violation of this Constitution or statute. Lawful refusal creates no liability and may not support penalty; any such penalty is void. The person may report the order to the EM.

§2.9 — Legat Consul Succession and Incapacity

(1) Full succession activates upon the Legat Consul's death, resignation, or removal. The Senate Speaker holds the office from that moment.

(2) Full succession vacates the successor's Senate seat. If the Senate Speaker is unable to serve, the most senior Senator by continuous service succeeds; ties are resolved by age.

(3) Statute may designate successors between the Senate Speaker and the senior-Senator fallback.

(4) The military chain of command recognizes succession from the moment of transfer. Orders issued in the prior Legat Consul's name after transfer are void.

(5) A successor serves the remainder of the term. Service through full succession counts toward the 12-year limit.

§2.9.a — State Emergency Council

(1) At each federal electoral period, the Elections Panel must publish to the NRS a public-lot ordered list of States. Each State is represented for this purpose by its constitutionally designated head of state or, absent one, its presiding legislative officer.

(2) When essential federal constitutional authority cannot be exercised through ordinary succession or emergency procedures, the head of the first reachable State on that list becomes Emergency Designee. The other reachable State heads constitute the State Emergency Council, which may direct or replace the Designee.

(3) The Designee may exercise the military command and essential continuity authority necessary to preserve the Republic and restore its constitutional government. The Designee and Council remain bound by Article I.

(4) The Council must facilitate the restoration of federal institutions, without directing or superseding the lawful processes by which States and Territories provide acting or permanent federal representatives.

(5) Constitutional authority returns to each federal institution as it becomes capable of exercising it. The Designee and Council cease when both chambers have a majority of seats filled and both Consular offices are filled.

(6) If the Designee and Council have not ceased within six months of the Designee taking office, they cease at that time and §15.7.a applies.

§2.11 — Emergency Governance

When extraordinary circumstances prevent ordinary constitutional government, either Consul, or a majority of available members of either chamber, may declare a continuity emergency. The declaration states the circumstances, is published to the NRS, and is sent to every State and Territory.

During a continuity emergency, each chamber able to meet may act notwithstanding ordinary quorum requirements; where one chamber cannot meet, the other may act alone, solely to preserve essential governmental functions and restore constitutional governance. Chamber thresholds are calculated from the members able to act. Emergency action may not amend this Constitution, extend any term except under §7.2.a, or derogate rights except under §1.16. Measures lapse when the emergency ends unless enacted by statute. Where a Consul is unavailable, authority passes under §2.9, §2.16 and §2.9.a.

Declarations lapse after 30 days unless renewed by the same process. Any member of either chamber or any Monitor may seek expedited SC review. Emergency procedures yield to ordinary procedures as soon as functioning permits. No emergency authority may delay that restoration.

§2.12 — Clemency

Each Consul may grant clemency only within their domain: the Legat Consul for military and national-security offenses, the Civic Consul for domestic federal offenses. Self-clemency is void.

Every grant must state its reasons. Clemency does not bar any constitutional, political, civil, or criminal remedy for misconduct connected with its exercise. Group amnesty requires legislation.

§2.13 — Consular Removal

The Legat Consul may be removed through two independent processes. Legislative removal requires a concurrent 2/3 vote of both chambers for serious misconduct, abuse of office, or permanent incapacity; the Legislature's determination that grounds exist is final.

Alternatively, a Senate majority may refer removal to a national recall referendum. The Legat Consul remains in authority while the referendum is pending and is removed upon certification of 60% approval with at least 55% participation. Succession occurs immediately. A failed recall may not be re-initiated during the same term.

§2.14 — Council of Ministers

The Council of Ministers consists of the Legat Consul's domain officers and the Civic Consul's ministers, serving as the standing forum for cross-domain coordination and disputes. It exercises no executive authority. Pending domain dispute resolution, each Consul may continue only functions clearly within their established domain; disputed actions are suspended. Unresolved disputes may be submitted to the SC. A summary record of each session is published to the NRS; the existence and general subject of a session may not be classified.

§2.14.a — Cross-Domain Emergency Lead

In a cross-domain emergency requiring unified operational authority, either Consul may propose a temporary operational lead. Designation requires concurrence of both Consuls and NRS publication. If they cannot agree, either may seek expedited SC resolution. Designation coordinates operations only and does not transfer constitutional domain.

§2.14.b — Cross-Domain Assistance

Either Consul may request assistance from the other within the responding Consul's domain. The request must state its purpose and scope and be published to the NRS. The requesting Consul controls the purpose; the responding Consul determines whether and how to act, controls the means, and publishes the response. Neither Consul may compel the other. Assistance may provide non-coercive support only. It may not be used to compel, detain, surveil, or collect intelligence on persons within the Republic, or to commandeer civilian resources, except as §1.16 or another express constitutional source allows.

§2.15 — Federal Prosecution

The Civic Consul is responsible for enforcement of federal law and may set general prosecution policy. Statute must establish a Federal Prosecution Service independent in individual prosecutorial decisions. Executive direction concerning a specific prosecution must be in writing and published to the NRS.

§2.16 — Executive Incapacity

(1) A Consul is temporarily unable to exercise authority upon their declaration or a determination by a majority of the Council of Ministers (at least five participating). Acting authority vests immediately in the Speaker of the Consul's chamber, then in statutory successors, then in the most senior chamber member by continuous service; ties resolved by age.

(2) The Consul may declare the incapacity ended, restoring authority 24 hours after publication. If incapacity is determined again on substantially the same grounds within 90 days, the renewed determination requires 2/3 of the deciding body. Following that determination, authority may be restored by majority approval of that body.

(3) A renewed determination under subsection (2) remains effective for no more than six months. Continuation thereafter requires a fresh 2/3 determination. The Consul may challenge any involuntary incapacity determination through expedited independent judicial review, limited to lawful invocation and inability to exercise the office. Policy disagreement is not incapacity.

(4) If fewer than five Council members are available, legislators are selected by lot to bring the deciding body to five: from the Senate for a Civic Consul proceeding, the Assembly for a Legat Consul proceeding.

(5) A person next in succession may decline within 48 hours by NRS publication; authority passes immediately. Failure to decline constitutes acceptance; the final available successor may not decline.

(6) Incapacity suspends only the exercise of authority. Death, resignation, and removal remain effective.

(7) If an acting Consul becomes unable to serve, acting authority passes immediately to the next qualified successor.

(8) Acting service does not count toward service limits and neither extends nor suspends the underlying electoral mandate.

§2.17 — Cooling-Off from Executive Service

During any constitutional cooling-off period barring a person from holding or seeking Consular office, that person may not serve in any federal executive capacity. This is the express exception to §7.4(5) and does not bar service outside the executive branch.

§2.18 — Domestic Insurrection

During armed insurrection against the constitutional order, the Civic Consul must report to the Assembly at statutory intervals for the duration of the response, as the Legat Consul reports to the Senate. No required report may be withheld because operations are ongoing.

Article III — The Legislature

§3.1 — The Legislature

The Legislature comprises the Assembly and the Senate. All legislation originates in the Assembly. The Senate may review and amend an Assembly-passed bill and must act within 90 days, or any shorter period defined by statute. By majority of its full seated membership, the Senate may once extend review by up to 30 days. Failure to act by the applicable deadline constitutes approval of a measure that requires no more than a majority, and never satisfies a requirement of an affirmative vote.

§3.2 — The Assembly

(1) States determine their own Assembly district arrangements, subject to §3.3. Single-member districts use majority-based Ranked Choice Voting; multi-member districts use proportional Ranked Choice Voting. Seats are allocated by the Webster method based on population, with a minimum of one seat per State and Territory, using a constituency divisor set and adjustable by statute.

(2) The census, conducted by a statutory independent agency at intervals defined by statute not exceeding ten years, is the basis for reapportionment.

(3) The Assembly selects a Speaker from its own members by a method it establishes, provided the Speaker holds the support of a majority of full seated membership. Quorum is a majority of full seated membership. The Assembly establishes its own internal procedures.

(4) Members serve two-year terms. No person may serve more than six terms in the Assembly.

(5) Mid-term Assembly vacancies are filled by special election within the period defined by statute, not exceeding 90 days, unless the remainder of the term is shorter than that period.

(6) A State or Territory may establish a recall process for its Assembly members, and a State for its senators, with the final decision vested in its legislature or governing authority or its eligible voters. No executive officer, administrative body, or court may alone recall a member.

§3.3 — Electoral Districts

States draw their own Assembly district maps subject to five criteria: substantially equal population per representative, accounting for the number of members elected by each district; geographic contiguity; compliance with §1.6 non-discrimination; no material dilution of minority voting power; and reasonable compactness. Voter political affiliation data, voting history data, and incumbent residence may not be used as criteria in drawing district boundaries. Protected-class data may be used only as reasonably necessary to comply with §1.6 and the dilution prohibition. The Elections Panel must address each finding of non-compliance by a published determination. Where the Panel determines a map non-compliant and an election will occur before the State adopts a compliant map, the Panel draws an interim compliant map for that election, which is retired when the State adopts a compliant map. Territorial districts are drawn by the Elections Panel under the same criteria. Any citizen or State government may seek judicial remedy for a district map that violates this Constitution.

§3.4 — Legislative Standards

Every bill must address a single clearly defined subject. The full text of a bill must be published to the NRS for the minimum period defined by statute before final passage; substantial amendment restarts that period.

Each chamber establishes and publishes its sitting schedule, and any revision, to the NRS. No recess may be used to defeat or delay a constitutional duty or deadline. Emergency sessions may be called by either Consul or by petition of one-third of either chamber.

The Legislature must maintain an ethics process capable of sanctioning and referring members. Each chamber may expel a member by 2/3 of full seated membership, effective immediately.

§3.5 — The Senate

(1) The Senate comprises two senators per State regardless of population, elected for six-year staggered terms. A mid-term vacancy is filled as the State provides, within the period defined by statute, not exceeding 90 days, unless the remainder of the term is shorter than that period.

(2) No person may serve more than two terms in the Senate.

(3) Senators elect the Senate Speaker. The Senate defines its own internal procedures.

§3.6 — Treaties and Trade Agreements

Treaties and compact agreements require ratification by 2/3 of the full seated Senate. Trade agreements concluded by the Legat Consul take effect upon approval by an absolute majority of the full seated membership of both chambers. Neither chamber may amend the terms of a concluded international agreement. If the Senate disputes the Legat Consul's classification of an instrument as a trade agreement, it is treated as a treaty pending resolution, and the Senate or Legat Consul may seek expedited SC determination.

The Legat Consul may initiate treaty withdrawal by notice. Withdrawal requires affirmation by 2/3 of the full seated Senate within the period defined by statute, not exceeding 90 days of the notice; absent affirmation, the notice lapses. Treaties with recognized indigenous nations under Article XVI may not be unilaterally withdrawn.

§3.7 — Legislative Process and Passage

Legislation requires an absolute majority of the full seated membership of both chambers unless this Constitution provides otherwise. Higher thresholds are counted from the full seated membership of the chamber or chambers specified. Where this Constitution requires a simple majority of a chamber, it means a majority of members voting, a quorum being present.

§3.8 — Legislative Oversight

The Legislature may not withhold records, deliberations, votes, or draft legislation from the Monitors. The LM may review pending legislation only upon request by a member.

§3.9 — Independent Statutory Agencies

The Legislature may establish independent agencies outside the authority of either executive and may alter or abolish agencies established by statute. The Legislature may not impair the independence of a function this Constitution assigns to an independent agency.

Unless this Constitution provides otherwise, statute governs organization, appointments, qualifications, terms, and oversight. The appointed leadership of an independent agency serves fixed terms and may be removed only for conduct, incapacity, or incompetence, not policy disagreement. Qualification requirements may not be designed to exclude candidates because of political or policy views or prior criticism of government.

§3.9.a — Operational Independence of Agencies

An independent agency established by this Constitution or by the Legislature is operationally independent of both executives and of the Legislature in the exercise of its functions, subject to this Constitution and applicable law.

§3.10 — Federal Legislative Competence

The Legislature may legislate only within powers assigned to the Republic by this Constitution and powers reasonably necessary to carry those powers into effect. Powers not assigned to the Republic remain with the States and their local governments. It may not enact legislation that destroys the capacity of States to govern themselves as self-governing communities. Where a valid federal law enacted within federal competence conflicts with State or local law, federal law prevails to the extent of the conflict. The Legislature may establish minimum standards only where this Constitution assigns the Republic responsibility for the subject or where necessary to secure Article I rights or another express constitutional obligation. The Legislature may not direct State or local institutions as instruments of federal administration except where this Constitution expressly provides otherwise.

Where this Constitution directs that a federal function, standard, procedure, or framework be established, defined, or regulated, the obligation is fulfilled by statute unless otherwise specified. Where this Constitution assigns a function to a legislative body, independent agency, or other institution, the Legislature must maintain an institution capable of performing it. No executive or administrative act may substitute for required legislation.

The Legislature must provide institutions established by this Constitution or by statute with resources sufficient to perform their assigned duties. Material changes in those resources must be accompanied by a published justification addressing the institution's responsibilities and capacity to fulfill them.

§3.11 — Delegation of Authority

The Legislature may by statute delegate defined authority within federal legislative competence to either Consul or to an independent agency under §3.9. A delegation must state its scope and conditions. Delegation does not divest the Legislature of that authority: statute prevails over any conflicting exercise of delegated authority, and the Legislature may rescind a delegation at any time. Each exercise of delegated authority is published to the NRS identifying the delegating statute.

Article IV — The Judicial Architecture

§4.1 — Court Structure

The Republic's judiciary consists of district courts, appellate courts, and the Supreme Court. The Legislature may establish, abolish, and define the jurisdiction of inferior courts by statute. Abolition of a court takes effect for each occupied judicial seat upon expiration of the sitting judge's term. Constitutional questions arising in any proceeding may be referred to the SC.

§4.2 — Judicial Appointments and Independence

(1) The Civic Consul must nominate inferior court judges from the Judicial Pool under §9.8 without undue delay following a vacancy. The Senate confirms by a majority of its full seated membership.

(2) Inferior court judges serve a single non-renewable 12-year term and may be removed only under paragraph (3). Disagreement with a decision is not grounds for removal.

(3) The Legislature may remove an inferior court judge by 2/3 of both chambers for serious misconduct, abuse of office, or permanent incapacity; the Legislature's determination that grounds exist is final. A judge may also be removed through a statutory judicial-discipline process under SC oversight on conduct- or competence-based grounds. No Monitor finding is prerequisite to either process.

(4) No public official may direct or threaten a judge, or attempt to influence a judge's decision in a pending matter other than through the proceeding itself. Judicial compensation may not be reduced during the judge's term.

(5) The Supreme Court may reassign cases among inferior federal courts or qualified judges as necessary to prevent judicial vacancies from delaying proceedings.

§4.3 — The Supreme Court

The Supreme Court consists of the number of justices established by statute, never fewer than five. Justices serve single non-renewable 12-year terms in staggered classes as nearly equal as practicable. Altering the number of seats requires 2/3 of both chambers; a reduction takes effect only through attrition.

An equally divided Court leaves the challenged ruling in effect, or, in an original proceeding, grants no relief. An equal division establishes no binding precedent. A majority of seated justices, including Temporary Associate Justices, constitutes ordinary quorum; constitutional questions require at least five participating justices.

§4.3.a — Supreme Court Justice Removal

A Supreme Court justice may be removed by 2/3 of both chambers for serious misconduct, abuse of office, or permanent incapacity; the Legislature's determination that grounds exist is final. Disagreement with a decision is not grounds for removal. No Monitor finding is prerequisite to removal.

§4.4 — Supreme Court Selection

(1) The Civic Consul nominates SC justices from the Judicial Pool under §9.8. Any pool member meeting the statutory qualifications for the Supreme Court is eligible.

(2) The Civic Consul nominates within the period defined by statute following a vacancy, not to exceed 90 days.

(3) The Senate must vote within the period defined by statute following nomination, not to exceed 120 days; confirmation requires a majority of the full seated Senate. No deemed confirmation applies.

(4) Upon an SC vacancy, the most senior eligible Appellate Court judge by continuous service becomes Temporary Associate Justice immediately by constitutional operation, with full voting rights until the vacancy is filled; ties are resolved by age.

(5) A justice's term runs from confirmation; a justice filling a mid-term vacancy serves only the remainder of the original term.

§4.4.a — Public Confirmation

If the Civic Consul fails to nominate, or the Senate fails to vote, within the applicable period under §4.4, the Temporary Associate Justice is submitted for public confirmation at the next federal electoral period. Confirmation requires 60% of votes cast under §7.3. An ordinary nomination and Senate confirmation completed before Elections Panel certification of the ballot ends the public route. If confirmed, the justice serves the remainder of the original term; if rejected, the next eligible Appellate Court judge becomes Temporary Associate Justice and the vacancy process restarts.

The Temporary Associate Justice may advocate publicly for confirmation. Statute must apply the foreign-contribution prohibition and disclosure requirements of §8.1 to public confirmation votes.

§4.5 — Judicial Review and Scope

(1) Courts may declare legislative acts, executive orders, and administrative decisions unconstitutional and void.

(2) Courts decide constitutional and legal questions, not policy questions. Where a statute is ambiguous, courts apply the interpretation most consistent with this Constitution and may not rewrite clear statutory language.

(3) Monitor findings published to the NRS are admissible in judicial proceedings.

(4) Except where this Constitution expressly confers standing, courts adjudicate only cases involving a concrete, articulable legal injury and may not issue advisory opinions. An organization has standing where at least one member would have standing and the claim is germane to the organization's established purposes. The Legislature may not leave any category of legal injury without a judicial forum.

(5) The SC has original jurisdiction over:

— constitutional disputes between States, and disputes between a State and the Republic concerning their respective constitutional powers or obligations;

— disputes between the Legat Consul and Civic Consul concerning their respective constitutional domains under §2.14;

— constitutional challenges involving constitutionally independent institutions where their independence protections make inferior court review structurally inappropriate;

— emergency rights claims brought directly under §16.2;

— and disputes over the consistency of ratified amendments with entrenched provisions under §17.3.

(6) Constitutional challenges to the exercise of immediate defensive military authority under §2.2 during active operations receive expedited independent judicial review.

(7) Where conflict between constitutional actors threatens lawful governance or constitutionally required essential services, existing lawful operations continue pending resolution. No actor may use refusal to certify, approve, or coordinate to suspend a constitutional obligation. The SC has expedited jurisdiction over such disputes.

(8) Courts may issue interim protective orders where necessary to prevent irreparable harm pending judgment. Failure to rule within a constitutionally prescribed period does not determine the merits or produce a substantive constitutional outcome. The parties retain all otherwise available judicial remedies.

§4.5.a — Judicial Decisions and Privacy

Judicial decisions are public. Courts must protect personally identifying information where its disclosure is unnecessary to understand the decision, enforce the law, or preserve public accountability.

§4.6 — Judgment Recognition

Judgments, official records, and authenticated documents valid in one jurisdiction of the Republic are recognized in all others. A judgment may be denied recognition only where the issuing court lacked jurisdiction or the judgment was obtained by fraud. A judgment contrary to Article I is void under §17.4.

A judgment or status order published to the NRS is self-authenticating and effective throughout the Republic without re-registration. No State or Territory may discriminate in recognition based on the parties or subject matter involved.

Article V — Citizenship and National Identity

§5.1 — Citizenship

A child is a citizen from birth if at least one parent is a citizen, if born within the Republic to a legal-resident parent, or if born within the Republic and otherwise stateless. Citizens acquire full citizenship rights, including voting and eligibility for office, at 18.

A legal resident may earn citizenship upon meeting the legal qualifications and continuous residency period established by statute. Qualifying honorable military or national service reduces the required residency period as provided by statute. All naturalization pathways require the civic and constitutional proficiency assessment established under §5.1.b.

Citizenship may not be revoked as punishment. Naturalized citizenship may be revoked only by judicial finding, on clear and convincing evidence, that it was obtained through material fraud in the application, and never where revocation would cause statelessness. Revocation does not affect derivative citizenship previously acquired by another person.

A child born before a parent acquired legal residency or citizenship who joins that parent in the Republic within the period defined by statute, which may not be less than five years, receives the parent's status at the time of joining.

§5.1.a — State and Territory Voting Citizenship

Every citizen is a voting citizen of exactly one State or Territory, determined by residence or domicile under applicable law. No law may leave a citizen without a State or Territory of voting citizenship. Statute must resolve conflicting claims; recognition in one jurisdiction terminates prior recognition in another.

§5.1.b — Civic and Constitutional Proficiency

The Republic must maintain a civic and constitutional proficiency assessment administered by an independent agency under §3.9. The assessment must comply with §1.6 and may not evaluate political opinion or cultural loyalty. Its content and administration are governed by statute.

§5.2 — Legal Resident Rights

Legal residents may work, enter contracts, own property, and access the social-state systems under Article XII. They do not hold federal voting rights or eligibility for federal office.

§5.3 — Custodial Care of Children

Where removal of a parent or guardian would deprive a child of their primary caregiver, the Republic must ensure the child's care, housing, and connection to remaining family, and the removal order is stayed until custodial arrangements are resolved. No child of a citizen or legal resident may be deported because of the child's own documentation status.

Article VI — Immigration and Residency

§6.1 — The Two-Stage Immigration System

Legal residency requires sponsorship under the applicable State or federal framework, followed by federal certification, except as otherwise provided by this Constitution. States retain discretion over whom they sponsor but may not apply sponsorship criteria that violate §1.6. Federal certification categories are established by statute; no ideological screening or nationality-based quotas may be applied at any stage. Any denial must specify the precise ground in writing. Upon completion of both stages, legal residency vests by operation of law; neither executive may delay, condition, or deny that status. The Legislature may set aggregate limits on total applications received and processed in any period. Asylum claims under §1.17 are exempt from ordinary sponsorship, certification, and aggregate application limits; no refusal of sponsorship may extinguish such a claim. Immigration into Territories is administered under federal standards, with each Territory entitled to negotiate immigration volumes and applicant qualifications with the Republic under its Territorial Compact.

§6.2 — Enforcement, Removal, and Appeals

(1) Only the federal government may remove a person from the Republic.

(2) State sponsorship denials may be challenged on grounds of discrimination contrary to §1.6. Federal certification denials on national security grounds may be challenged through judicial review. Courts determine the appropriate remedy.

(3) A person subject to removal proceedings, or challenging a decision under this section, is entitled to counsel appointed at public expense where they cannot afford representation.

§6.3 — Asylum and Protection

(1) An asylum claim must be determined before removal may be executed.

(2) Where a federal court grants asylum, the person acquires legal residency by operation of that determination; State sponsorship and federal certification are not required conditions.

(3) No penalty arising solely from irregular entry may be imposed on a person whose claim is pending or has been granted.

(4) Asylum proceedings must provide a qualified adjudicator; interpreter access; the right to present evidence and witnesses; the right to legal representation with appointed counsel at public expense where the applicant cannot afford representation; a written decision with grounds; and a right of appeal. The asylum proceedings statute must ensure accessibility to persons in Territories and geographically remote areas.

(5) Asylum claims must be adjudicated by independent courts within the judicial branch. The Legislature must provide for their jurisdiction and proceedings by statute.

(6) An unaccompanied minor arriving in the Republic holds full §1.18 protection from the moment of contact. A federal legal guardian must be appointed by an independent federal court with jurisdiction over the point of contact within 72 hours.

(7) Detention of an unaccompanied minor must be lawful and necessary and may occur only in a facility specifically designated and resourced for children.

§6.3.a — Unexecuted Removal Orders

A person whose removal cannot be executed remains at liberty, subject to all applicable laws of the jurisdiction in which they reside.

Article VII — Elections and Federal Office

§7.1 — Consular Election System

(1) The Legat Consul is elected through two concurrent requirements: a national RCV majority and a State plurality. A candidate satisfies the State plurality requirement by receiving more first-preference votes than any other candidate in a majority of the Republic's States. A candidate wins outright by satisfying both. Territory citizens vote in consular elections and their votes count in the national RCV total, but Territories are excluded from the State plurality calculation.

(2) Where a candidate's national RCV majority reaches or exceeds 60% of votes cast, the State plurality requirement is waived.

(3) Where no candidate wins outright, a runoff is conducted between the national RCV winner and the candidate, other than that winner, who received first-preference pluralities in the most States. The runoff is decided by national majority without a State plurality requirement.

(4) Electoral ties are resolved by lot under the supervision of the Elections Panel. The Elections Panel administers and certifies all consular elections.

§7.2 — Federal Elections

(1) Federal elections are held at regular intervals: Assembly elections every two years; Senate elections on the staggered six-year cycle; Legat Consul elections every four years.

(2) All federal elections use Ranked Choice Voting.

(3) The Legislature defines by statute the specific timing, duration, and structure of the federal electoral period within these constitutional floors.

(4) States administer federal elections through the National Voting System under standards established and enforced by the Elections Panel.

(5) Neither executive nor any State may interfere with federal elections or restrict lawful access to the National Voting System, except as expressly authorized by this Constitution.

(6) The Republic must provide the financial and technical assistance necessary for every State to meet federal election standards. Assistance is subject to Elections Panel oversight.

(7) The results of a federal election or a direct vote of the citizens are final upon certification, subject to timely judicial review for material error or violation of constitutional electoral requirements, under procedures established by statute.

§7.2.a — Special Elections and Postponements

Special elections are conducted under procedures established by statute.

A federal election may be postponed due to a natural disaster by a two-thirds vote of each chamber of the Legislature. A postponed election must be held as soon as practicable. The mandates of affected officeholders continue until certification of the postponed election.

§7.3 — Electoral Supermajority Threshold

Except for constitutional-amendment referendums governed by §17.1, any supermajority required by this Constitution in a direct vote of the citizens is 60% of votes cast, in addition to any separately established participation or turnout requirement.

§7.4 — Eligibility and Disclosure for Federal Office

(1) Every candidate for federal office and every person assuming federal office without election must publicly disclose their criminal history under penalty of perjury. A current and accurate disclosure satisfies this requirement for subsequent appointments or elevations. Knowingly false or materially incomplete disclosure constitutes a federal offense.

(2) No criminal conviction disqualifies a person from federal office except a conviction for insurrection, rebellion, or treason against the Republic, or subversion of a federal election. These grounds are exhaustive and require conviction rather than accusation or pending charges.

(3) A person who leaves a constitutional office before the expiration of their term is deemed to have completed that term for purposes of term limits and required cooling-off periods. Departure from office does not shorten, waive, or extend any cooling-off period otherwise required by this Constitution.

(4) A person constitutionally ineligible for an office may not exercise its authority, including through succession or acting service, except where this Constitution expressly provides otherwise. Succession passes to the next eligible person.

(5) An office-specific restriction does not disqualify a person from another constitutional office unless this Constitution expressly provides otherwise.

(6) A candidate disqualified by the Elections Panel is entitled to expedited judicial review under procedures established by statute. Review must be available in sufficient time to protect the candidate's right to participate in the election or to obtain an effective remedy where the election has already occurred.

§7.5 — Removal from Federal Office

A federal officeholder whose tenure or removal is governed by this Constitution may be removed only through a mechanism established or expressly authorized by this Constitution. Criminal liability remains unaffected.

§7.6 — Continuity and Acting Service

Selection and confirmation procedures for fixed-term constitutional offices must provide for uninterrupted succession.

§7.7 — Official Capacity Protection

Constitutional officers and persons acting within the authority of a constitutional office are protected from personal civil liability for lawful acts performed within their official authority. This protection does not extend to criminal conduct, acts outside official authority, or violations of this Constitution.

§7.8 — Separation of Branch Authority

No person may simultaneously hold office in more than one branch of government, except when temporarily exercising acting authority under this Constitution. During such acting service, the person retains their original office or mandate but may not exercise any authority of that office. The body that selects the officer may designate an interim holder of the office's functions for the duration of acting service.

§7.9 — Inviolability of Electoral Mandates

An elected constitutional mandate may not be shortened, suspended, or terminated except through a mechanism expressly provided or authorized by this Constitution.

§7.10 — Ethics and Financial Disclosure

(1) A financial interest is disqualifying where it creates a direct and material conflict with the impartial exercise of official duties.

(2) Except for Monitor Generals as provided in Article IX, constitutional officers must disclose their financial interests, holdings, income sources, and liabilities to the Monitor responsible for their office, within a period defined by statute after taking office and annually thereafter. Disclosures are published to the NRS.

(3) An officer with a direct financial interest in a decision within their authority must recuse themselves. This requirement is self-executing.

(4) A constitutional officer with a personal, financial, or other material connection to a matter within their authority must publicly disclose that connection and state whether they will participate or recuse themselves, with reasons for that decision. The disclosure and explanation are published to the NRS. This provision does not diminish mandatory recusal under subsection (3).

(5) Constitutional officers may not accept gifts exceeding a de minimis threshold established by statute; absent such statute, the threshold is zero. Gifts received in an official capacity belong to the Republic and must be disclosed and transferred to the appropriate public authority regardless of value.

(6) Each Monitor may investigate violations within its mandate and refer matters warranting further action to the appropriate authority.

(7) The Legislature may establish codes of conduct, disclosure requirements, conflict-of-interest standards, and disciplinary procedures for constitutional offices outside the Legislature. Such rules may not diminish constitutional authority, tenure, or institutional independence.

§7.12 — Post-Service Restrictions

Constitutional officers may not exploit non-public information, privileged access, or official influence obtained through their service for private benefit after leaving office. The Legislature may establish post-service restrictions and cooling-off periods by statute. The responsible Monitor must audit compliance; enforcement rests with the appropriate legal authority.

§7.13 — Federal Public Service Ethics

The Legislature must establish disclosure and recusal requirements for federal employees and military personnel whose duties present material conflicts of interest. The responsible Monitor must audit institutional compliance.

§7.14 — Compensation of Federal Officials

Compensation of federal officials is established by statute. No federal official may determine their own compensation or that of their direct supervisors other than through such a statute. Changes to the compensation of elected constitutional officers take effect only after the next election for the affected office following enactment.

§7.15 — Authority by Constitutional Operation

Authority conferred, transferred, or assumed by operation of this Constitution vests immediately upon satisfaction of the constitutional conditions, without oath, acceptance, publication, or other implementing act unless expressly required by this Constitution. The change must be recorded to the NRS as soon as practicable. The NRS is the authoritative public record.

Article VIII — Electoral Finance and Campaign Conduct

§8.1 — Electoral Finance

All contributions to electoral campaigns must be disclosed in full to the Elections Panel, including the identity of every contributor and the amount given, without threshold or exception. The Elections Panel publishes contribution records to the NRS; publication may present contributions below a threshold defined by statute in aggregate or generalized form to protect the privacy of individual contributors. Anonymous contributions are prohibited.

Citizens and legal residents may contribute to electoral campaigns, subject to individual contribution limits established by statute. Contributions from corporations and other business entities are barred. The Legislature may by statute regulate contributions and expenditures by organizations, provided the regulation does not infringe Article I. Contributions from foreign governments, foreign nationals other than legal residents, and foreign-controlled entities are prohibited. No person may make, receive, or fund an electoral contribution or independent expenditure on behalf of, at the direction of, or with funds from such a source, directly or through an intermediary.

Independent expenditures made to support or oppose a candidate or a question submitted to a direct vote of the citizens are subject to the same disclosure requirements as direct contributions but are not subject to contribution limits. Expenditures coordinated with a campaign are treated as direct contributions.

Financial contributions to electoral campaigns and expenditures coordinated with a campaign are subject to regulation under this section and are not protected as speech or associational activity under §1.5. Independent political expression remains protected under §1.5, subject to the disclosure requirements and foreign-source prohibitions of this section.

§8.2 — Campaign Conduct

Candidate impersonation, vote suppression, and interference with election administration are prohibited. Campaign communications must clearly identify their sponsor. The Legislature must establish sanctions by statute. The Elections Panel must administer electoral conduct requirements but may not create substantive restrictions on political expression or judge the truthfulness, political merits, or opinions expressed in campaign communications.

Constitutional officeholders may not use public resources, personnel, or official authority for electoral campaign purposes.

§8.3 — Political Neutrality of Public Communication Resources

Public communication resources, including those operated by private entities using public resources, must be made available for electoral purposes on politically neutral and nondiscriminatory terms established by statute.

§8.4 — Electoral Assistance

The Legislature may provide impartial electoral assistance by statute to support the exercise of the rights guaranteed under §1.8.

Article IX — The Monitors

§9.1 — Three Monitors

The Republic maintains three constitutionally independent Monitors — Legislative (LM), Executive (EM), and Judicial (JM) — each selected under §9.2. Monitors hold an information-only mandate: they observe constitutional processes, assess compliance, and publish findings. Findings and assessments are not binding on any constitutional actor and are not a prerequisite for any legal proceeding or governmental function, except for consequences this Constitution expressly attaches to a finding. Each Monitor General serves a 10-year non-renewable term.

Any constitutional officer, chamber, or body may request an assessment from a Monitor within its mandate. Where an investigation or assessment is discontinued, the Monitor must publish the reasons for discontinuation and the findings obtained before discontinuation.

§9.1.a — The Legislative Monitor

The Legislative Monitor audits the Legislature for fiscal accuracy and constitutional compliance, including the population census, Assembly districting under §3.3, and all information relating to the Legislature's public business. The Legislative Monitor also audits the Elections Panel's administration of referendum eligibility.

§9.1.b — The Executive Monitor

The Executive Monitor audits both executives, their ministers and subordinate officers, the Monetary Authority, and federal administrative agencies, including independent agencies, for constitutional compliance and the exercise of their public authority.

The Executive Monitor audits executive officers for dereliction of constitutional duties. Dereliction means failure to perform a constitutionally mandated function within the required period, except where circumstances genuinely beyond the officer's control prevented performance. Political disagreement with a constitutional requirement is not a defense.

§9.1.c — The Judicial Monitor

The Judicial Monitor audits the courts, judicial officers, the Elections Panel, and compliance with constitutional treaty and compact obligations, including all information relating to the public business of institutions within its mandate.

§9.1.d — Monitor General Term Expiry and Vacancy

A Monitor General's constitutional authority terminates automatically upon expiration of the term. Any official act taken after term expiry is void. Where the office becomes vacant, including upon term expiry without a successor, or the Monitor General is temporarily unable to exercise authority or is constitutionally suspended, the most senior eligible member of that Monitor's candidate pool by continuous pool tenure who accepts designation serves as Acting Monitor General. Ties in pool tenure are resolved in favor of the older eligible member.

The Acting Monitor General holds full constitutional authority until the permanent successor assumes office or the original Monitor General's authority is restored, but may not be appointed as the permanent successor to the Monitor General for whom they act. At the conclusion of acting service, the acting officer returns to the candidate pool. The designation is recorded to the NRS and both executives notified. Incapacity or suspension does not vacate the permanent office or interrupt its term.

§9.1.e — Monitor General Incapacity

A Monitor General may declare themselves temporarily unable to exercise the duties of office. Where the Monitor General is unable to make such a declaration, the constitutional authority responsible for suspension under §9.7.a may determine temporary incapacity on stated functional grounds. Political or policy disagreement alone is not incapacity; publication of the grounds must protect confidential personal information.

During temporary incapacity, the Acting Monitor General assumes authority under §9.1.d. Temporary incapacity does not vacate the office or interrupt its term.

The affected Monitor General may declare recovery and resume the exercise of authority immediately, unless the authority responsible for the involuntary incapacity determination obtains judicial relief preventing restoration. That authority bears the burden of establishing grounds for continuing the involuntary restriction. Involuntary incapacity and any continued restriction are subject to expedited independent judicial review. Temporary incapacity may not be used as a substitute for permanent removal under §9.9.

§9.2 — Selection and Independence

Each Monitor General must be selected through a process that excludes the institution subject to that Monitor's oversight from controlling the selection.

§9.3 — Monitor General Selection

All Monitor General confirmations follow the same process: the nominated or lottery-selected candidate is confirmed by national popular vote at the next federal electoral period by simple majority; timing is defined by statute to ensure seamless succession; if the confirmation vote fails, the §9.1.d acting mechanism activates and a new selection must begin within 60 days. The Elections Panel administers all confirmation votes. The LM Monitor General is nominated by the SC from the LM candidate pool, which is audited jointly by the EM and JM. Where the SC fails to nominate an LM Monitor General within 60 days of a vacancy, the JMC must select a nominee by public lottery from the eligible LM candidate pool. The EM Monitor General is nominated jointly by the Assembly Speaker and Senate Speaker from the EM candidate pool, which is audited jointly by the LM and JM, with JM audit findings on the nominee’s disclosure record published to the NRS before the vote; where the Speakers fail to jointly nominate within 60 days of a vacancy, the JMC must select a nominee by public lottery from the eligible EM candidate pool. The JM Monitor General is selected by public lottery under §9.8 from the JM Candidate Pool under §9.4. No two Monitor General full terms may be scheduled to begin within 18 months of each other; service for the remainder of a predecessor's term does not commence a new term for the purposes of this spacing requirement. For a scheduled succession, the confirmed successor assumes full authority at the precise moment the incumbent's term concludes. A successor confirmed following an unscheduled vacancy assumes full authority immediately upon certification of the confirmation result and serves the remainder of the original term. Any person confirmed by the public to serve a full term as a Monitor General is not subsequently eligible to enter any Monitor General pool. A person confirmed by national popular vote to serve the remainder of a predecessor's term following an unscheduled vacancy under this section may not subsequently enter the Monitor General pool for that same capacity, but remains eligible for the pools of the other two capacities if otherwise qualified. Acting service under §9.1.d does not constitute confirmation for purposes of this provision.

§9.4 — Judicial Monitor Candidate Pool

(1) Eligibility for the Judicial Monitor Candidate Pool is limited to former State or Republic judges who have served on a court of record at the trial court level or above and have been out of judicial office for at least one year. Former Supreme Court justices must have been out of Supreme Court service for at least five years.

(2) The Judicial Monitor Candidate Pool is audited jointly by the Legislative and Executive Monitors.

§9.4.a — Judicial Pool — Eligibility Criteria

Any citizen meeting the following eligibility criteria may apply directly to the Elections Panel for entry into the Judicial Pool, from which all federal judicial appointments are drawn: at least 15 years of legal practice or 10 years of judicial service; no disqualifying financial interest as defined in §7.10. A person who has served as a Supreme Court justice may not subsequently re-enter the Judicial Pool. A person who has served in any other federal judicial appointment may not be nominated again to the same court, but remains eligible for nomination to a different federal court. Temporary or acting judicial service does not constitute service for purposes of this provision.

§9.5 — Monitor Operations

Monitor findings and assessments must be published permanently to the NRS, subject to constitutional protections for confidential information and lawful security interests. No authority outside the issuing Monitor may suppress, delay, alter, or classify its findings.

Monitor personnel may independently disclose evidence of improper suppression or alteration of findings to the NRS, subject to the same confidentiality protections, and must be protected from retaliation for lawful disclosure.

Monitors have unrestricted access to records, personnel, facilities, and systems within their constitutional audit mandates. Access to confidential or classified information does not authorize its public disclosure. Obstruction of a Monitor acting within its constitutional mandate must be documented and published to the NRS.

The three Monitors must periodically provide the Legislature and the citizens with a joint report on the State of the Republic.

§9.5.a — Compliance Standards and Findings

Monitors must publish their audit findings to the NRS and submit them to the constitutional institution responsible for the matter under review.

Where this Constitution requires a determination of compliance based on an audit, that institution must make the determination under the applicable constitutional and statutory procedures.

A body or officer subject to a Monitor report must publish a response to the NRS within a period established by statute. The response need not agree with the Monitor's findings.

§9.5.b — Agency Accountability

Monitor findings, reports, and assessments do not substitute for a responsible body's independent obligation to perform its constitutional and statutory duties or to act on matters within its operational authority.

§9.7 — Joint Monitor Council

The three Monitor Generals constitute the Joint Monitor Council, which coordinates matters crossing Monitor jurisdictions and oversees compliance with constitutional processes assigned to it.

Two Monitor Generals constitute a quorum. Council decisions require a majority of participating members. Dissenting positions must be published to the NRS.

The Council may establish compliance standards within its constitutional mandate but may not exercise functions assigned to another constitutional institution or override the independent authority of an individual Monitor.

The Council must audit the National Record System at intervals defined by statute, including its operational compliance, accessibility, continuity, content integrity, and completeness of constitutionally required publications.

§9.7.a — Institutional Compromise Protocol

Where two Monitor Generals find evidence that the third has engaged in serious misconduct or abuse of office, they may recommend suspension by publishing their findings to the NRS.

Suspension requires approval by a majority of the Supreme Court for the Legislative Monitor General, jointly by the Speakers of both legislative chambers for the Executive Monitor General, or jointly by both executives for the Judicial Monitor General. Disagreement with a Monitor General's findings or conclusions is not grounds for suspension.

A suspension may continue for no more than 90 days unless removal proceedings have been initiated under §9.9. Upon initiation of removal proceedings, a valid suspension may continue until their conclusion, subject to expedited independent judicial review of its continuing necessity. A court may terminate a suspension whose continuing necessity is not established. Suspension ends immediately if removal is rejected or the proceeding concludes without removal. Initiation of removal alone does not suspend the Monitor General.

Suspension does not constitute removal and may not be used as a substitute for permanent removal. During suspension, acting authority operates under §9.1.d.

§9.8 — Constitutional Pool Framework

(1) The Elections Panel maintains constitutional candidate pools and registries and administers constitutional selection lotteries under applicable constitutional and statutory requirements. The Joint Monitor Council audits compliance with those requirements. Pool records are publicly accessible through the NRS.

(2) Each constitutional candidate pool must contain at least five eligible members. A deficiency must be published to the NRS, and the Elections Panel must take action to restore the pool under procedures established by statute.

(3) Eligibility for constitutional candidate pools is determined solely by objective criteria established by this Constitution. No applicant may be excluded on grounds of legal philosophy, judicial temperament, ideological orientation, or political association.

(4) An applicant excluded or removed from a constitutional candidate pool is entitled to a published statement of reasons and timely judicial review under procedures established by statute.

(5) Changes to eligibility criteria apply prospectively only and do not affect persons already entered in a constitutional pool or registry under the criteria applicable at the time of their entry. This protection does not exempt a member from continuing constitutional eligibility requirements, including the prohibition on disqualifying financial interests under §7.10.

§9.9 — Constitutional Officer Removal

(1) A proceeding to remove a Monitor General for serious misconduct or abuse of office may be initiated by an institution outside the Monitor's audit mandate: for the Legislative Monitor General, by either Consul; for the Executive Monitor General, by either legislative chamber; for the Judicial Monitor General, by either legislative chamber or either Consul. The initiating authority must publish stated grounds to the NRS. Initiation does not suspend the Monitor General's authority.

(2) The Elections Panel must administer a national removal referendum within 90 days of initiation, or at the next regularly scheduled federal election, whichever occurs first. Removal requires approval by 60% of votes cast under §7.3, without a turnout requirement. Failure to conduct the referendum within that period does not terminate the proceeding. The affected Monitor General retains their authority unless separately suspended under this Constitution.

(3) Where a removal referendum fails, another proceeding may not be initiated against the same Monitor General on substantially the same grounds arising from the same conduct during that term. This restriction does not apply to materially new conduct or evidence.

(4) Where two Monitor Generals determine that the third is permanently incapable of performing the duties of office, they may submit a recommendation for removal to the Speaker of the Assembly. Removal for permanent incapacity requires approval by two-thirds of each chamber of the Legislature and by both Consuls. Political disagreement with a Monitor General's findings or conclusions does not constitute incapacity.

(5) For constitutionally confirmed independent officers other than Monitor Generals and federal judges, removal may be initiated by a resolution supported by one-third of either legislative chamber. Removal requires a concurrent vote of two-thirds of the full seated membership of each chamber, on grounds established by statute. Initiation does not suspend the officer's authority.

(6) The Legislature defines enumerated removal categories by statute for the offices covered by paragraph (5). Changes to removal categories apply only to conduct occurring after they take effect.

§9.9.a — Monitor General Disclosure

Monitor Generals disclose financial interests under the same substantive requirements and schedule established in §7.10, with disclosure published directly to the NRS; no Monitor reviews another Monitor General's disclosure. Concealment of a disqualifying financial interest, or failure to recuse where required, is serious misconduct for purposes of §9.9.

Article X — The National Record System

§10.1 — National Record System

(1) The National Record System is the permanent, tamper-evident public record of the Republic — freely accessible to every Inhabitant at no cost.

(2) Every constitutional act, order, finding, certification, designation, declaration, and determination made under this Constitution is published to the NRS as a permanent record; no provision need state this obligation individually. Official records and materials created, received, maintained, or produced in the exercise of official duties are property of the Republic. No officer may remove them from Republic custody, retain them as personal property, or destroy them except as applicable law authorizes. Their publication, access, retention, and classification are governed by this Article and applicable law.

(3) All electoral records — voter registration, ballot counts, audit trails, certification documents, constitutionally required campaign-finance records, electoral-administration records, direct-democracy records, and constitutional-amendment records — must be published to the NRS within the applicable constitutional or statutory timeframe. No classification exception applies to those records. Nothing in this subsection permits disclosure of an individual voter's ballot, information that would defeat ballot secrecy under §11.2, or personal information protected by §1.7.

(4) Where this Constitution provides a specific publication timeline it governs. Otherwise a constitutionally required record is published as soon as possible after the act or event to which it relates.

(5) Records may not be deleted, altered, or reclassified after publication; corrections are published as new entries alongside the original.

(6) Where the NRS Panel determines by unanimous vote that a record poses an imminent, specific, and documented threat to individual safety, it may restrict access to that record for up to 30 days pending review by the court designated by statute. The record is restored when the 30 days end unless that court has confirmed the restriction on the narrowest possible grounds, in which case the court sets its duration. The original timestamp and the restriction record both remain as permanent NRS entries. Where a restriction ends without confirmation, the same record may not be restricted again under this subsection on the same or substantially similar grounds.

(7) The JM maintains a continuously operating parallel authentication system, physically independent of the NRS, capable of preserving all constitutional acts with full constitutional effect from issuance; upon NRS restoration, parallel records migrate with their original timestamps. Where the NRS has not been restored within 180 days, the parallel system becomes the constitutional record.

(8) The Legislature defines technical standards for both systems by statute.

§10.2 — Classification Criteria

Government records may be classified only where required to protect national security, under grounds defined by statute or standards the classifying executive has published to the NRS before the classification; a statute prevails over any conflicting executive standard. The classifying authority must state the ground relied on at the time of classification. No record may remain classified beyond 25 years from the date of original classification. A single 5-year extension takes effect when the executive that classified the record publishes a justification to the EM; the EM assesses whether it meets the applicable standard and publishes its finding to the NRS. Within 30 days after classification expires, the NRS Panel publishes the declassified record; this obligation is automatic and requires no further government act. Any person with standing may at any time petition the court designated by statute for release

of a classified record. The court orders release of every portion whose classification is not required to protect national security under a ground consistent with statute and this Constitution; any redactions, and the ground for each, are published with the released portion.

Article XI — NRS Panel and Elections Panel

§11.1 — NRS Panel and Elections Panel

(1) Two constitutionally independent panels — the NRS Panel and the Elections Panel — operate the Republic's permanent record infrastructure and electoral systems respectively.

(2) The Elections Panel establishes and maintains the National Voting System, sets administrative and technical standards for federal elections, certifies election equipment for State procurement, audits State compliance with federal election standards, administers referendums and confirmation votes, maintains constitutional candidate pools and registries, administers constitutional selection lotteries, and certifies all federal election results.

(3) The NRS Panel and Elections Panel are independent agencies under §3.9.a and are operationally independent of each other in the exercise of their respective functions.

(4) Panel members are appointed under §3.9. Each panel must have no fewer than five members at all times. No single appointing authority may hold a majority of appointments to either panel within any single electoral term.

(5) Each panel may adopt temporary technical measures in response to imminent security threats or system failures within its domain, under any procedure statute establishes or, absent statute, by majority vote of its seated members. Such measures may not change electoral rules, timelines, or NRS record permanence, and expire after 72 hours. A panel may adopt a further measure only on a fresh published determination of an imminent threat.

(6) Where either Panel falls below the five-member floor, the remaining members may by majority vote designate qualified civil servants employed by that Panel as Acting members for the period defined by statute, not to exceed 180 days. Where the remaining members are unable to designate, the Civic Consul designates from the same group. Acting members designated by the Civic Consul may not at any time constitute a majority of the Panel's seated membership. An Acting member exercises all authorities of a full member during the designation.

§11.2 — NVS Properties and Voting Rights

The National Voting System must maintain three constitutionally required properties simultaneously: ballot secrecy (technically impossible to link any vote to any voter, including in post-election audits), public auditability (aggregate results mathematically verifiable by anyone with NRS access; every vote individually verifiable by the voter in a manner that cannot be used to prove to anyone else how they voted), and resilience (capable of operating in degraded conditions without compromising either secrecy or auditability). Information generated by the NVS, including voter participation records, may be used or shared only to administer, audit, or certify the relevant election or petition, or for judicial review of its results. Eligibility verification may not store or expose voter identity within the NVS. No State may impose requirements or intermediaries that effectively reduce NVS access or impose burdens not present in direct NVS participation. The Elections Panel must inform every eligible citizen of their federal races and how to vote before each federal election.

§11.3 — State Election Non-Compliance

Where the Elections Panel finds through audit that a State's election administration materially fails to meet the federal election standards under §11.1 or the requirements of §11.2, it publishes the finding to the NRS and notifies the State formally. The State has the period defined by statute to cure the identified failures. Where the finding is made before an election, the Panel may withhold result certification for affected districts pending compliance or a special election under §7.2.a. Where the State does not cure within the cure period, the Elections Panel administers the relevant federal election directly within that State for that electoral period only; State administration then resumes automatically. Neither a finding of non-compliance nor withholding of certification affects the validity of votes cast.

Article XII — Social State and Economic Rights

§12.1 — The Social State

The Republic is a social state. Every Inhabitant, meaning every person present within the Republic's jurisdiction, is entitled to conditions of life consistent with human dignity, which the Republic fulfills through three mandatory guarantees: universally accessible basic healthcare; social assistance sufficient to assist in maintaining basic material conditions; and free compulsory education for every child.

The Legislature establishes the framework and adequacy standards for these guarantees by statute. No statutory adjustment may eliminate or substantially impair the constitutional guarantees established by this section. The Executive Monitor assesses compliance annually.

Parents may direct their children's education within public standards.

§12.1.a — The Monetary Authority

The Monetary Authority is a constitutionally mandated independent agency under §3.9.a, governed by §3.9 except as this section provides.

It is responsible for monetary policy, currency issuance, fiscal integrity certification, and the National Endowment functions assigned by this Article. The Monetary Authority has exclusive authority to issue the Republic's currency; no other body may issue instruments intended to function as legal tender within the Republic.

Principal decision-makers exercising the Monetary Authority's constitutional authority must be selected through an independent candidate process and confirmed by two-thirds of the Senate. No single officer or institution may appoint a majority of its principal decision-makers. Their terms must be staggered so that ordinary electoral turnover cannot replace the entire leadership at once.

Disagreement over monetary policy, economic judgment, or a lawful certification is not cause for removal. A vacancy does not suspend or transfer the Monetary Authority's constitutional functions.

§12.1.b — Monetary Authority Reporting

The Monetary Authority publishes a State of the Economy report to the NRS, the Assembly, the Legat Consul, and the Civic Consul no less than semi-annually, or more frequently as statute requires. The report independently assesses economic conditions, fiscal sustainability, and performance against the Republic's fiscal obligations; identifies areas requiring improvement; and describes the MA's actions within its authority.

§12.2 — Fiscal Accountability

(1) The annual budget originates in the Assembly. Each Consul prepares and submits to the Assembly a proposed budget for their respective domain, published to the NRS upon submission, by the deadline defined by statute; absent a statutory deadline, no later than 120 days before the start of the fiscal year. A Consul's failure to submit does not delay or bar the budget process.

(2) The Republic conducts its fiscal affairs to sustain public finances, including public debt, over the long term while fulfilling its constitutional obligations. Each budget is published with an assessment of its effect on fiscal sustainability, which the MA reviews for accuracy.

(3) Where no budget is enacted by the start of the fiscal year, or any earlier deadline defined by statute, or where an enacted annual budget is repealed by optional referendum under §13.1, an interim automatic appropriation takes effect by constitutional operation covering:

— judicial operations, active defense authorizations under §14.2, and social state continuity under §12.1;

— civil service compensation;

— resources sufficient to maintain the assigned duties of institutions under §3.10;

— and debt service obligations.

(4) The interim appropriation continues at the prior fiscal year's inflation-adjusted level until a budget is enacted; no new programs may be initiated or expanded under it.

(6) The Legislature must fund the National Endowment by appropriation in years of fiscal surplus. The EM assesses compliance annually.

§12.2.a — Extraordinary Defensive Expenditure

Where an active or imminent attack requires immediate defensive expenditure beyond available appropriations, and the Assembly is unable to act, the Legat Consul may authorize expenditure necessary for the immediate defense of the Republic.

The Legat Consul must report such expenditure to the Speaker of the Assembly without undue delay. The Assembly must exercise its appropriation authority as soon as it is able to act.

This authority continues only while the conditions requiring its exercise persist.

§12.3 — Taxing Power and National Revenue Fund

The Legislature has exclusive authority to levy taxes, duties, and tariffs by statute. States, Territories, and local governments retain authority to tax within their own jurisdictions, subject to §12.5. All public money received by the Republic, other than the National Endowment's assets, is deposited into the National Revenue Fund. No money may be withdrawn from the Fund except by appropriation, including the interim appropriation under §12.2. The Executive Monitor audits the National Revenue Fund's receipts and disbursements, reviews their compliance with constitutional and statutory requirements, and publishes its findings to the NRS. Tariff rates established by a ratified treaty or approved trade agreement under §3.6 constitute legislatively authorized rates for the duration of that instrument; the Legislature may set tariff schedules within which the Legat Consul may negotiate specific rates.

§12.4 — National Endowment

The National Endowment is a constitutionally established reserve fund that backstops the Republic’s social state obligations under §12.1 during a Severe Revenue Contraction — a decline in national revenue that meets a threshold the Monetary Authority defines and publishes to the NRS before applying it, as certified by the Monetary Authority. The Endowment operates independently of the annual budget process and is managed by the Monetary Authority, whose sole obligation with respect to it is to preserve and grow it for that backstop purpose. On Monetary Authority certification of a Severe Revenue Contraction, disbursements to the National Revenue Fund for social state obligations under §12.1 begin and continue until the Monetary Authority certifies the contraction has ended. Where a certified Severe Revenue Contraction continues beyond 12 months, continued disbursement requires authorization by statute, enacted through the ordinary legislative process and renewed at intervals not to exceed 12 months for the duration of the contraction. Where authorization is not renewed, disbursements cease. The Monetary Authority's certification of the contraction's end terminates disbursements regardless of authorization status.

§12.5 — Internal Commerce

No State or Territory may impose requirements on goods, services, or economic activity originating in another State or Territory that are more burdensome than those applied to its own. The Legislature may establish uniform internal commerce standards by statute.

§12.6 — Fiscal Equalization

The Legislature must establish by statute a fiscal equalization mechanism ensuring that every State and Territory has fiscal capacity reasonably sufficient to fulfill the Social State obligations under §12.1 and the rights guaranteed under Article I.

The Executive Monitor must audit and review the mechanism's compliance with constitutional requirements and publish its findings to the NRS. The Legislature must publish a response to findings of noncompliance within a period established by statute.

Article XIII — Direct Democracy

§13.1 — Optional Referendum

(1) Citizens may initiate a national referendum to repeal enacted legislation. A petition must be filed with the Elections Panel within 90 days of enactment and proceeds in two phases, each authenticated through the NVS. The period for completing both phases is established by statute, subject to §13.1(8).

(2) Phase One requires signatures from citizens equal to a percentage of eligible voters, defined by statute at not less than 0.5% nor more than 3%, in each of at least one-third of all States and Territories.

(3) Phase Two begins on completion of Phase One and requires signatures from 5% of eligible voters nationally; signatures gathered in Phase One carry over and count toward this threshold.

(4) Legislation is not exempt from optional referendum solely because it expands a constitutional right or implements a constitutional obligation. The repeal of legislation does not extinguish, suspend, or diminish any right or obligation established by this Constitution.

Citizens may repeal legislation through an optional referendum, including legislation containing appropriations. A referendum may not amend an appropriation or substitute a different amount. Repeal of legislation terminates the authority it establishes, subject to existing lawful obligations and the constitutional requirements for continuity of government.

(5) The Elections Panel must determine eligibility for optional referendum upon filing and publish its reasons to the NRS. Its determination is subject to timely judicial review under procedures established by statute.

(6) Upon verification of the required petition signatures, the Elections Panel must administer the referendum within 90 days. A majority of votes cast in favor of repeal repeals the legislation upon certification of the result.

(7) A referendum or initiative rejected by the voters may not be reinitiated in substantially the same form within three years, unless the proposal has been materially changed. The Legislature may reenact legislation repealed by referendum. Such legislation remains subject to a new optional referendum.

(8) No statute, rule, fee, deadline, or administrative practice may make a process established by this Article nominally available but functionally prohibitive.

§13.2 — Citizen Legislative Initiative

(1) Citizens may propose legislation directly to the Legislature through the two-phase petition process established under §13.1, without the filing deadline applicable to optional referendums. Phase Two requires signatures from 10% of eligible voters nationally. The Elections Panel must determine whether a proposal complies with the constitutional requirements for citizen legislative initiatives and publish its reasons to the NRS. Its determination is subject to timely judicial review under procedures established by statute.

(2) Upon verification of the required petition signatures, the Legislature has 90 days to enact the proposed legislation. If the Legislature does not enact the proposal within that period, the Elections Panel must administer a national referendum on the proposal within the following 90 days. The proposal becomes law upon certification of approval by 60% of votes cast.

(3) An initiative enacted under this section is subject to this Constitution as any statute is, and may not narrow a right under Article I, directly appropriate public funds, or impose or alter taxes, duties, or tariffs. The need for legislative appropriations to implement an initiative does not make it ineligible. Disputes concerning an initiative's constitutional validity are subject to judicial review on petition of any person with standing.

Article XIV — Military Authorization and Accountability

§14.1 — Authorized Purposes for Military Force

Military force may be used only for two purposes: protection of the Republic's territory, citizens, and treaty allies; and, with legislative authorization stating the specific grounds, response to crimes against humanity as defined under international law. The Legislature applies that definition directly in each authorization; no prior international recognition or finding is required. Legislative authorization must state which purpose it serves; an authorization that states neither is void.

§14.2 — Defense Authorization and Allocation

A law authorizing military operations must establish their purposes and scope and provide for the orderly withdrawal of deployed personnel and fulfillment of obligations arising from the operation. The Legat Consul must provide a proposed plan of action and budget, including provision for those responsibilities. The Assembly must appropriate funds for military operations under Article XII. Within the authorized purposes and appropriations, the Legat Consul exercises military command.

The Legat Consul must conduct authorized operations within the law and report material changes in their conduct or circumstances to the Senate. The Senate may require an updated operational plan for review. Operations requiring expansion of the purposes or scope established by law must be submitted for further legislative authorization.

The Legat Consul must report to the Senate on the conduct, progress, and continuing objectives of operations authorized by law. The Senate must review those operations against their legislative authorization and may require additional reporting and explanations. The Assembly must review military expenditures against the appropriations authorized for those operations.

The Legat Consul must keep the Civic Consul informed of military expenditure and its domestic budgetary implications through the Council of Ministers under §2.14. The Executive Monitor independently audits military expenditure, including intelligence activities supporting those operations, and publishes its findings to the NRS.

Expiration or withdrawal of authorization or appropriations for a military operation terminates authority to pursue its objectives. The Legat Consul retains authority to conduct an orderly withdrawal, protect personnel during withdrawal, and fulfill existing lawful obligations, subject to the Legislature's appropriation authority.

§14.4 — Treaty-Based Military Authorization

A treaty duly ratified under this Constitution constitutes lawful authorization for military action required by its terms, within the purposes permitted by §14.1.

Military operations conducted under treaty authority are subject to the command, notification, operational review, and appropriation provisions of §2.2 and Article XIV.

The courts may determine whether a treaty's conditions for military action have been satisfied and whether an operation falls within the authority granted by the treaty.

§14.5 — State Forces

States may maintain organized forces for disaster response, civil emergencies, and the preservation of public order within their territories. Such forces are subject to Article I.

The Legat Consul may call State forces into federal service when necessary to defend the Republic against an active or imminent external attack. State forces so called serve under federal command for the duration of the defensive necessity. Other federal employment of State forces requires authorization by law. Upon completion of federal

service, command of State forces returns to the respective State.

The Civic Consul may request the assistance of a State's forces within that State, with the consent of the State authority designated by its own constitution, which may withdraw consent at any time. No State force may be employed against the constitutional order of the Republic, against another State, or to obstruct a federal constitutional function. Composition, training, equipment standards, and terms of federal call-up are established by statute.

Article XV — Territorial Structure and Statehood

§15.1 — Territorial Compact

A Territory operates under a Territorial Compact: the restructuring agreement under §15.4 or the incorporation agreement under §15.6 where the Territory results from one of those processes, or otherwise a standard statutory framework the Legislature defines. Every Compact must provide for an elected local governing authority over matters of local concern.

§15.1.a — Provisional Status

A State in Provisional status remains a State, and its government and Assembly representation continue without interruption. Sitting senators complete their current terms, but no new Senate term begins for the State while Provisional status continues.

Upon two consecutive biennial Statehood Audits determined to demonstrate compliance under §15.2, the State automatically returns to ordinary State status. The Elections Panel must administer a special election within 90 days to fill any vacant Senate seats.

§15.2 — The Statehood Audit

(1) A Territory's elected governing authority under §15.1 may by resolution request a Statehood Audit for the whole Territory. Alternatively, a citizen petition — signed by a percentage of eligible voters within the Territory defined by statute at not less than 5% nor more than 15%, authenticated through the NVS, and certified by the Elections Panel — achieves the same effect. A defined geographic subdivision of a Territory may petition for Statehood independently of the remainder under the same criteria, using the citizen petition mechanism scoped to eligible voters within the subdivision.

(2) Each Monitor must conduct the portion of the Statehood Audit within its constitutional mandate and publish its findings to the NRS. The audit examines: free, lawful, and competitive elections; functioning constitutional government capable of State responsibilities; fiscal capacity to discharge constitutional and lawful obligations; effective rule of law and lawful administration; substantial compliance with Article I; and other objective constitutional-capacity criteria established by statute. A completed Statehood Audit requires findings from all three Monitors. The responsible legislative chamber must determine overall compliance with the applicable constitutional requirements based on the complete audit record. No individual Monitor finding, nor any combination of Monitor findings, automatically determines the outcome of the audit.

(3) Initiation under subsection (1) opens a Statehood proceeding. The Territory must obtain an affirmative legislative determination of compliance on a first Statehood Audit completed within two years after initiation. An audit is completed when all three required Monitor findings have been published to the NRS. An audit completed within the period remains eligible for legislative determination afterward; legislative delay does not invalidate it. If no audit completed within the period is determined compliant, the proceeding lapses when the period expires and no timely completed audit remains awaiting determination, and may be initiated again under subsection (1).

(4) Following the first affirmative determination, the Territory remains a Territory. A second Statehood Audit must be completed within two years after completion of the first audit determined compliant, and must independently receive an affirmative legislative determination of compliance. An audit completed within that period remains eligible for legislative determination afterward; legislative delay does not invalidate it. A noncompliant determination does not terminate the proceeding while the qualification period remains open or other timely completed audits await

determination. If no audit completed within the period is determined compliant, the proceeding lapses when the period expires and no timely completed audit remains awaiting determination, and may be initiated again under subsection (1).

(5) Upon an affirmative legislative determination that the second qualifying Statehood Audit satisfies the constitutional requirements, the Territory becomes a State immediately by constitutional operation, except that Statehood for a subdivision takes effect only upon completion of the applicable remainder-viability process under §15.5.a.

(6) Statehood immediately creates two Senate seats. The Elections Panel assigns the two seats by public lot to two distinct existing Senate classes and administers a special election within 90 days. The first senators serve only the remainder of the assigned class terms.

(7) Every State undergoes a biennial Statehood Audit. The Senate must determine compliance for each State under §15.2.a. The Senate may consider multiple audit reports together, provided that each State receives a separately identifiable determination supported by the required majority and published to the NRS. Failure to reach a determination within the prescribed period transfers authority to the Assembly under §15.2.a. Determinations remain subject to judicial review for legality, jurisdiction, procedure, and application of lawful criteria; courts may not substitute policy judgment for the legislative determination.

(8) Where active conflict prevents completion of a biennial Statehood Audit in a significant portion of a State's territory, the Monitors may publish a provisional audit-status finding. Such a finding constitutes neither compliance nor noncompliance and does not count toward consecutive audit failures. Provisional audit status is unavailable where the State materially contributed to the conditions preventing completion of the audit.

§15.2.a — Legislative Statehood Audit Determinations

(1) The Assembly initially determines whether a Territory satisfies the constitutional requirements for Statehood. The Senate initially determines whether an existing State has passed or failed a biennial Statehood Audit and whether a State should enter Provisional status under §15.3. These decisions are made on the completed audit record, with stated reasons published to the NRS.

(2) A determination that a Territory satisfies the requirements for Statehood requires a majority of the full seated membership of the responsible chamber. An affirmative determination that the Territory does not satisfy those requirements also requires a majority of the full seated membership. A determination that an existing State has passed or failed its audit requires a majority of votes cast with a quorum present. Placement of a State into Provisional status is a separate decision requiring a majority of the full seated membership. The applicable threshold remains unchanged if authority transfers, and is calculated against the chamber then exercising authority.

(3) Each chamber must establish procedures for resolving inconclusive votes. A determination is complete only upon an affirmative decision for compliance or noncompliance, or, for Provisional status, for or against placement, by the required majority. An inconclusive vote or failed motion does not constitute an adverse determination.

(4) The initially responsible chamber must make its determination within the period established by statute, not exceeding 90 days after receipt of the completed audit record. For a separate determination of Provisional status under §15.3, that period begins when the third consecutive determination of noncompliance has taken effect and the required audit history and findings are available to the Senate. If it fails to determine the matter within that period, authority transfers immediately, automatically, and exclusively to the other chamber. The receiving chamber must make its determination within the period established by statute, not exceeding 90 days after transfer. The original chamber may not reclaim authority for that determination; the receiving chamber's valid determination has the same constitutional effect.

(5) If the receiving chamber fails to determine the matter within its period, the matter is subject to expedited judicial review. Courts may enforce the receiving chamber's duty through appropriate remedies but may not decide substantive compliance or Provisional status in its place. Failure or inaction by either chamber does not itself approve or reject an audit, change a State's status, or terminate a timely completed Territorial Statehood proceeding. All determinations remain subject to judicial review.

§15.3 — State Remediation and Provisional Status

(1) A State receiving a failed biennial Statehood Audit enters remediation. Following the first consecutive failure, the State must publish a Remediation Plan to the NRS. Following a second consecutive failure, the State must publish a revised Remediation Plan. A successful audit interrupts the sequence of consecutive failures. A third consecutive failure permits consideration of Provisional status under this section. The periods for submitting Remediation Plans are established by statute.

(2) Upon a third consecutive failed biennial Statehood Audit, the Monitors must submit the audit history and findings to the Senate. The Senate must determine whether the seriousness and persistence of the State's constitutional deficiencies justify Provisional status. Entry into Provisional status requires a majority of the full seated membership of the deciding chamber and takes effect upon publication of the determination to the NRS. If the chamber declines to place the State into Provisional status, the State remains subject to remediation. A subsequent failed biennial Statehood Audit permits renewed consideration under this section. The Senate must decide under §15.2.a; on Senate inaction authority transfers to the Assembly under that section.

(3) Determinations under this section are subject to judicial review for constitutional compliance, jurisdiction, and procedural legality. A court may invalidate a determination made contrary to this Constitution but may not substitute its judgment for the legislative chamber's assessment of whether Provisional status is warranted.

§15.4 — Voluntary Devolution and Merger

(1) A State may pursue devolution by a State referendum approving it by 60% of votes cast with participation by at least 50% of eligible voters. Upon approval, the State and the Legislature negotiate a restructuring agreement, which takes effect upon ratification by 2/3 of the full seated Senate. The agreement is legally binding and specifies asset and liability allocation, transition timeline, constitutional status of successor jurisdictions, fiscal obligations to the Republic, and continuing obligations.

(2) The State retains its existing status, ordinary or Provisional, until the restructuring agreement takes effect, when each successor jurisdiction becomes a Territory.

(3) A Territory or a defined portion of a Territory may merge with a geographically contiguous existing State. Merger requires a referendum approving it by 60% of votes cast with participation by at least 50% of eligible voters, approval by the existing State through its own constitutional process, a joint assessment by the Legislative and Judicial Monitors of the merger's effect on the receiving State's constitutional integrity, published to the NRS and considered by the Senate, and ratification by a simple majority of the Senate. The referendum is triggered by a petition signed by citizens equal to a percentage of eligible voters within the Territory or defined portion, set by statute at not less than 5% nor more than 15%, authenticated through the NVS and certified by the Elections Panel. The petition period may not exceed 12 months.

(4) Following certification of a referendum under this section, any party with standing has 30 days to challenge the process or result. After that period, no challenge may be filed, and the next step proceeds upon the expiration of the period or the resolution of any challenge.

§15.5 — Re-Qualification Pathway

A Territory resulting from devolution is deemed to have requested a Statehood Audit under §15.2(1) on the effective date of devolution. Where a defined geographic subdivision of the Territory achieves Statehood under §15.2 or merges with an existing State under §15.4, the remainder continues as a Territory.

§15.5.a — Remainder Viability

(1) Where two or more petitions under §15.4 or §15.2 affecting different defined portions of the same Territory are certified within 90 days of one another, they are addressed together under paragraph (4).

(2) Where paragraph (1) does not apply, the Joint Monitor Council must assess whether the remaining portion of a Territory could independently satisfy the constitutional requirements for Statehood and publish its findings to the NRS within the period established by statute. A missing or late assessment does not determine viability or nonviability.

(3) If the Council fails to publish its assessment within that period, the Civic Consul must establish viability standards consistent with the constitutional requirements for Statehood, apply those standards to the remaining Territory, and publish the standards, evidence, findings and resulting assessment to the NRS. The Civic Consul must transmit the report to the Speakers of both legislative chambers for distribution to their members.

The Assembly must determine whether the proposed subdivision would compromise the remaining Territory's constitutional viability, considering available assessments and evidence under procedures established by statute. If neither the Council nor the Civic Consul reports, the Legislature must establish the necessary assessment procedures by statute and proceed to a determination. The absence of either report does not constitute a determination or prevent legislative action. The period for the Assembly's viability determination begins upon receipt of the Joint Monitor Council's assessment, or, where the Council fails to report, upon receipt of the Civic Consul's assessment or expiration of the period established by statute for that assessment, whichever occurs first. The Assembly must make its determination within the period established by statute, not exceeding 90 days. Failure to determine the matter transfers authority automatically and exclusively to the Senate, subject to the receiving chamber's decision period and judicial enforcement under §15.2.a. An adverse determination triggers paragraph (4). The determination must precede any referendum on the proposed subdivision or the subdivision's acquisition of Statehood. Qualification periods under §15.2 remain governed by that section.

(4) Where paragraph (1) applies, or the responsible legislative chamber determines that the remaining portion would not be viable, the underlying referendums or Statehood certifications do not proceed. The Civic Consul convenes a Territory Convention, composed of the Assembly members representing districts within the Territory, which has 90 days from its first session to produce a proposed resolution addressing all affected portions together. If no resolution is produced within that period, all petitions addressed under this paragraph lapse together, the Territory continues undivided, and none of them may be reinitiated under substantially the same geographic scope for three years. A resolution the Convention produces must be ratified by referendum of the eligible voters it affects and then proceeds under the applicable process of §15.2 or §15.4.

§15.6 — Voluntary Incorporation

(1) A sovereign entity may petition to join the Republic's constitutional framework as a Territory. The petition requires a resolution adopted by the entity's own legislature by 2/3 majority, confirmed by a citizen referendum achieving a simple majority on at least 50% participation. Upon confirmation, the entity and the Legislature negotiate an incorporation agreement specifying a transition period not exceeding 48 months, which the Legislature ratifies by 2/3 of both chambers.

(2) Either chamber may request a JM assessment of the entity's compliance with §1.16.a before the ratification vote; published JM findings must be given due consideration. Any person with standing may challenge the incorporation before the SC on the ground that the entity systematically violates §1.16.a, within 30 days after ratification.

(3) No constitutional officer may induce or coerce an entity to initiate or advance this process.

§15.7 — State Immutability and Territorial Integrity

A State's constitutional boundaries are fixed except as provided in this Article. A State divides only through devolution under §15.4, and each successor jurisdiction proceeds as a Territory. The Republic's territorial extent may be reduced only by the consent of the affected population, through a parliamentary amendment with Popular Ratification or a citizen initiative amendment. A founding status election under §16.2 during the Transition Window, or a completed process under §15.9 including its national referendum, satisfies this consent requirement without further amendment or Popular Ratification.

§15.7.a — Reversion to the States and Territories

If §2.9.a(6) applies, §15.7 does not apply, and the States and Territories are sovereign governments that may act as such, including by reconstituting the Republic. The rights in §1.16.a continue to bind every government.

§15.8 — Local Government

Cities, counties, municipalities, and other local subdivisions receive constitutional recognition and are entitled to reasonable fiscal, legal, and administrative capacity to carry out the lawful functions assigned to them.

§15.8.a — Subsidiarity and Local Capacity

(1) Public functions not expressly assigned by this Constitution to the Republic or another constitutional institution are exercised at the most local level of government reasonably capable of performing them effectively and consistently with this Constitution.

(2) States retain authority to allocate ordinary governmental functions between State and local governments consistent with subsection (1), Article I, and §15.8.

(3) Responsibility may move to a higher level of government where the lower level lacks reasonable capacity to perform the function, materially fails a constitutional or lawful minimum standard applicable to it, the matter produces material effects across jurisdictions that cannot reasonably be resolved at the lower level, or coordination at the higher level is reasonably necessary to discharge an express constitutional obligation. Federal action additionally requires an independent source of federal competence under §3.10.

(4) Action by a higher level under subsection (3) is limited to the scope and duration reasonably necessary to address the incapacity, failure, cross-jurisdictional effect, or coordination need. Responsibility returns to the lower level when that justification no longer exists, except where lawfully reassigned under an independent constitutional authority.

(5) No higher level of government may create or maintain lower-level incapacity through systematic denial of the fiscal, legal, or administrative means reasonably necessary to perform an assigned function and then rely on that incapacity as grounds for centralizing the function.

§15.9 — Voluntary State Independence

(1) A State may seek independence from the Republic through three stages. Stage One requires the State legislature to resolve by 2/3 majority to submit the independence question to the State's eligible voters; the referendum must achieve 60% of votes cast with at least 60% participation among the State's eligible voters. A failed referendum may not be reinitiated on the same or substantially similar grounds for five years.

(2) Upon certification of the referendum result, the Elections Panel publishes the independence petition to the NRS; the State may not withdraw the petition while the process continues.

(3) No constitutional officer may induce or coerce a State to pursue or abandon an independence petition or referendum. The Republic must provide factual information about the process upon request.

(4) Stage Two requires both chambers to hold a concurrent ratification vote within 90 days of NRS publication. Assembly members elected from districts within the petitioning State and senators elected from the petitioning State are recused from this vote, and the required 2/3 majority and quorum for each chamber are calculated from the remaining seated members. If either chamber fails to achieve 2/3 or fails to vote within 90 days, the petition lapses.

(5) Stage Three requires a national referendum administered by the Elections Panel within 180 days of the Stage Two vote, in which all eligible voters of the Republic, including those of the petitioning State, participate. Independence is approved by 60% of votes cast under §7.3 with at least 55% citizen participation. If the referendum fails, the petition lapses.

(6) A State whose petition lapses at Stage Two or Stage Three may reinitiate Stage One without restriction.

(7) Upon certification of an affirmative Stage Three result, the State and the Legislature negotiate a separation agreement specifying asset and liability allocation, borders, transition timeline, fiscal obligations, and continuing obligations, ratified by the Senate by 2/3 of full seated membership; independence takes effect on the date the agreement specifies.

§15.10 — State Government Incapacity

Where a State's constitutional government has become incapable of exercising governmental authority and cannot be restored through its own constitutional continuity mechanisms, the Legislature may by statute authorize the Republic to temporarily administer only those functions necessary to preserve rights, essential services, and restoration of democratic State government. Command of State forces under §14.5 not otherwise in federal service passes to the temporary administration for its duration. Temporary administration ends automatically when constitutional State government is restored.

Article XVI — Indigenous Sovereignty

§16.1 — Acknowledgment of Prior Sovereignty and Recognition

Indigenous nations hold sovereignty that precedes the Republic. This sovereignty is acknowledged, not granted, and the Republic may not extinguish it. The Republic deals with recognized indigenous nations as sovereign nations. A recognized indigenous nation, wherever that term appears in this Constitution, means a nation that, as of Day Zero, held a treaty with, a compact with, or formal recognition from a predecessor government, or a nation recognized under §16.4. A nation omitted from the founding register may appeal to the SC within the period defined by statute on the sole ground that the predecessor record was misapplied. Recognition confers no territorial rights of itself.

Indigenous nation membership and Republic citizenship are compatible and independent statuses.

§16.2 — Founding Status Election

(1) At ratification, the Republic formally notifies every nation on the founding register of its rights under this section.

(2) During the founding admission period established by the ratified founding arrangements, each recognized Indigenous nation may elect the founding status options provided by this section through its own lawful democratic or traditional governance process.

The nation may elect Associated Community status, remaining a fully sovereign political community in a consensual compact relationship under Article XX, or Territorial Integration under Article XV with the ordinary Statehood pathway available. An election for Territorial Integration constitutes the petition and confirmation otherwise required by §15.6; the nation and Legislature must negotiate an incorporation agreement ratified by two-thirds of both chambers. A nation independently qualifying for direct founding-State entry under Article XIX may pursue that route during the founding admission period.

(3) A recognized Indigenous nation that does not elect integration during the founding admission period remains a sovereign independent nation, treated as an Associated Community pending conclusion or confirmation of a compact under Article XX. That default relationship does not constitute consent to terms the nation has not agreed to. After the founding admission period, the nation may seek admission under procedures available to independent nations.

(4) No constitutional officer may induce or coerce a nation to elect either status. The Republic must provide factual information upon request.

(5) Article I applies within the territory of each recognized nation during the founding admission period unless the nation, through its own lawful governance process, positively rejects that application and publishes the decision to the NRS. After that period, §20.3 governs an Associated Community and the ordinary Constitution governs a nation that elected Territorial Integration.

(6) While Article I applies under subsection (5), residents have access to expedited judicial protection for violations of its guarantees, as provided under Article IV.

(7) Election of Territorial Integration permanently ends the nation's founding Associated Community status.

A community that subsequently becomes an independent sovereign nation may establish a new Associated Community relationship through a compact under Article XX.

§16.3 — Treaty Supremacy and Continuity

(1) All treaties entered into by predecessor governments with Indigenous nations are binding obligations of the Republic, regardless of the nation's status under this Constitution. Legislation cannot diminish treaty rights. A treaty may be renegotiated or superseded only by mutual agreement, negotiated between the Legat Consul and the nation

and ratified by the Senate under §3.6.

(2) Where performance of an inherited treaty requires an institution or administrative mechanism that no longer exists, the Legat Consul must designate an appropriate interim administrator to maintain the Republic's obligations.

The Legat Consul and the Indigenous nation must determine an appropriate successor arrangement through mutual agreement.

(3) The EM must audit and report on the Republic's compliance with its treaty obligations under this section. The frequency and procedures of such audits are established by statute.

§16.4 — Post-Founding Recognition

(1) A people asserting sovereignty preceding the Republic may petition for recognition under this section.

The JMC must investigate the claim against the recognition criteria established in §16.1 and publish its findings to the NRS.

(2) Upon receipt of a petition supported by the JMC's findings, the Legat Consul must determine whether recognition is granted and publish the decision and its reasons to the NRS.

A declined claim may be reconsidered upon presentation of material new evidence. Procedures and deadlines for recognition decisions are established by statute.

(3) Recognition under this section establishes the nation as a recognized sovereign legal person and activates the Republic's applicable obligations under §16.3.

The recognized nation may negotiate and enter arrangements with the Republic in accordance with this Constitution. Its territorial or political relationship with the Republic is determined through the applicable constitutional procedures.

§16.5 — Transition of Existing Arrangements

(1) Existing arrangements between recognized Indigenous nations and predecessor governments remain in effect until replaced or modified through mutual agreement under the applicable provisions of this Constitution.

Disputes arising under those arrangements are subject to judicial review under Article IV.

(2) The Republic must undertake compact negotiations with a recognized Indigenous nation holding Associated Community status and must conduct those negotiations in good faith.

Procedures for initiating negotiations are established by statute.

Article XVII — Constitutional Amendments

§17.1 — Amendment Paths

(1) This Constitution may be amended through the parliamentary path or through citizen initiative. Every member's vote on any amendment is published to the NRS.

(2) A parliamentary amendment requires approval by two-thirds of the full seated membership of both legislative chambers.

The proposing body must specify whether the amendment proceeds through State Ratification or Popular Ratification and establish a definite period for ratification in accordance with statute.

State Ratification requires approval by two-thirds of the States. Popular Ratification requires approval by two-thirds of votes cast in a national referendum.

The ratification period established for an amendment remains fixed throughout its consideration.

(3) A Citizen Initiative Amendment proceeds through the two-phase petition process established under §13.1, without the filing deadline applicable to optional referendums. Phase Two requires signatures from 15% of eligible voters nationally.

Upon verification of the required signatures, the Elections Panel must administer a national referendum within 180 days. The amendment is ratified upon certification of approval by 70% of votes cast.

An amendment rejected by the voters may not be reinitiated in substantially the same form within five years, unless materially changed.

(4) Amendment of the following provisions requires Popular Ratification regardless of the amendment's origin: the Monitor selection mechanisms and independence protections (§9.2–§9.4), the Monitor information-only mandate and non-dependency principle (§9.1), the sufficiency-of-resources protection for the Monitors under §3.10, the NRS architecture and permanence requirements (§10.1), the Elections Panel and NRS Panel independence (§11.1), the designation of non-derogable rights (§1.16.a) and the limit on amendments extinguishing them (§17.3(3)), the reversion of authority to the States and Territories (§15.7.a), and this subsection. A Citizen Initiative Amendment satisfies this requirement through its own referendum under paragraph (3).

An amendment that modifies the substance or legal effect of a provision protected under this subsection requires Popular Ratification, regardless of where the amendment is placed in this Constitution.

§17.2 — No Executive Veto; Amendment Takes Effect

No Consul signature or veto applies to an amendment. An amendment takes effect upon certification of its ratification — by the LM for State Ratification, otherwise by the Elections Panel — and NRS publication.

§17.3 — Amendment Consistency and Supremacy

(1) A proposed constitutional amendment must identify the provisions it repeals or modifies.

An amendment ratified in accordance with this Constitution is interpreted consistently with existing provisions wherever reasonably possible. Where an irreconcilable conflict exists, the later amendment governs to the extent of the conflict, subject to the protections established by §17.3(3).

(2) The JM must examine each proposed constitutional amendment for consistency with this Constitution and publish its findings to the NRS.

The JM has 30 days following parliamentary approval or verification of a citizen initiative's required petition signatures to publish its findings.

Ratification may proceed upon publication of the findings or expiration of that period, whichever occurs first.

(3) The Supreme Court must adjudicate challenges to the constitutional validity of ratified amendments on petition of any person with standing.

The Court may determine whether an amendment satisfied the requirements for ratification and whether it extinguishes a right designated non-derogable under §1.16.a.

An amendment that extinguishes such a right is void to the extent of the extinguishment.

(4) Amendments operate prospectively — they do not retroactively alter the constitutionality of acts that were constitutional when performed.

(5) A proposed constitutional amendment may be withdrawn by its proposing authority before submission for ratification.

Upon submission for ratification, the amendment proceeds under the applicable constitutional process until ratified or rejected.

§17.4 — Supremacy of This Constitution

This Constitution is the supreme law of the Federated Republic. Any legislative act, executive order, treaty, administrative decision, or other government action inconsistent with this Constitution is void to the extent of the inconsistency.

Article XVIII — Federal Property and National Trust

§18.1 — The Use Doctrine

The federal government holds no territorial sovereignty within any State or Territory. Federal Operational Use Rights confer functional operational control over a designated footprint for an authorized purpose and terminate when that function ends.

Federal Operational Use Rights must be registered to the NRS, identifying their geographic boundaries, authorized purpose, and conditions for termination.

Registration establishes the authoritative public record of the right. A federal claim to land or authority beyond the registered boundaries or authorized purpose has no legal effect.

Failure to register a lawfully established use right is subject to judicial enforcement under §18.3.

§18.2 — Seat of Government

The Seat of Government is hosted by a State or Territory selected through a process established by statute.

The hosting arrangement establishes the Republic's Operational Use Rights over the designated federal footprint in accordance with §18.1.

Within that footprint, the Republic exercises exclusive authority over its constitutional operations. The host retains territorial sovereignty and may exercise its ordinary authority consistently with those federal functions.

The legality of the selection and hosting arrangement is subject to judicial review under Article IV.

§18.3 — Operational Use Rights

The federal government must publish notice of termination to the NRS in accordance with statute.

Upon termination, the designated land and improvements revert to the host State or Territory, unless the Republic and the host establish a new arrangement by mutual agreement.

Disputes concerning the existence, boundaries, registration, termination, or disposition of Operational Use Rights are subject to expedited judicial review.

§18.4 — The National Trust

(1) Land designated to the National Trust is held for the permanent benefit and use of the people of the Republic.

Designation requires the consent of the State in which the land is situated and does not alter that State's territorial sovereignty.

Management may be exercised by the State, the Republic, or jointly, under arrangements established in accordance with law.

Land remains protected by the National Trust until its designation is removed under §18.4(2).

(2) Designation of land to the National Trust requires approval by two-thirds of both legislative chambers and the consent of the host State, except that territorial participation is governed by §18.5.

Removal of land from the National Trust requires approval by two-thirds of both legislative chambers and ratification by 60% of votes cast in a national referendum administered by the Elections Panel.

Where land is subject to an international conservation agreement, withdrawal from that agreement requires approval by two-thirds of the Senate before the removal process proceeds.

(3) Land designated to the National Trust must be maintained for its designated public purposes, preserving ecological integrity and public accessibility.

§18.5 — National Trust Land in Territories

Designation of land within a Territory to the National Trust is governed by its Territorial Compact or, where the Compact is silent, by statute, subject to the requirements of §18.4.

Article XIX — Transition and Ratification

§19.1 — Activation Threshold and Ratification

This Constitution takes effect upon interim Elections Panel certification that the NVS is operational and meets §11.2 and a national ratification vote achieving 60% of votes cast.

Where multiple sovereign nations simultaneously pool sovereignty through a treaty of union, transition provisions adapt as specified in the treaty of union, subject to the constitutional principles of this Article.

Where existing institutions overlap with institutions established by this Constitution, the Legislature must determine their relationship by statute.

Existing institutions retain their lawful standing until their relationship with the Republic's institutions is established in accordance with this Constitution.

§19.2 — Day Zero and Transition

(1) Day Zero is the date on which constitutional ratification is certified.

Upon Day Zero, laws inconsistent with the Individual Sovereignty Floor are void, and the predecessor national government's public assets, liabilities, rights, and obligations vest in the Republic, subject to this Constitution. Authoritative predecessor records must be transferred or registered to the NRS in accordance with law.

The founding arrangements submitted for ratification must establish an implementation schedule consistent with this Article.

(2) The institutions of the Republic assume their constitutional authority individually as each becomes capable of exercising its assigned functions.

Upon such capability, the corresponding authority of predecessor or temporary institutions transfers immediately by constitutional operation.

The establishment or readiness of one institution need not depend upon the establishment or readiness of another, except where the exercise of its constitutional functions necessarily requires it.

Founding arrangements must provide for the establishment of constitutional institutions and the continuity of government during the transition.

§19.3 — Caretaker Status

(1) Officials and institutions of the predecessor national government may continue in caretaker capacity only as necessary to preserve lawful government, existing services, rights, obligations, and public safety until the corresponding institutions of the Republic become constitutionally capable of exercising those functions.

Existing State, territorial, Indigenous, and local governments continue under their own lawful authority except where this Constitution expressly provides otherwise.

(2) A caretaker legislature may enact only measures reasonably necessary to preserve government continuity, constitutional rights, existing obligations, public safety, or the implementation of this Constitution.

Legislation enacted beyond this authority is void and subject to judicial review.

Legislation validly enacted during the transition remains subject to amendment or repeal by the Legislature of the Republic.

(3) A joint Monitor panel must independently monitor the constitutional transition and publish its findings to the NRS.

The interim Elections Panel must establish the joint Monitor panel before ratification. Its composition and procedures are determined by the founding arrangements, with provision for participation by the Republic's Monitors as they become constitutionally operational.

The joint Monitor panel dissolves when all predecessor and temporary authorities exercising transitional constitutional functions have been replaced by their corresponding institutions of the Republic.

§19.3.a — Transition National-Defense Continuity

(1) Until the institutions of the Republic responsible for national defense become constitutionally capable of exercising their respective functions, predecessor national institutions may exercise only the military and defense authority reasonably necessary to defend the Republic, its territory, population, and forces against actual or imminent invasion or armed attack, or to fulfill military obligations arising from inherited treaties that remain binding under §19.5(2).

(2) Predecessor military command arrangements, defense appropriations, and military authorities remain provisionally effective only to the extent necessary to exercise the defensive authority permitted under subsection (1).

New commitments may be undertaken only where reasonably necessary to conduct or sustain such authorized defensive action.

All continuing arrangements and commitments remain subject to alteration or termination by the competent constitutional authorities of the Republic as they assume their respective functions.

(3) Until the Legislature of the Republic becomes constitutionally capable of exercising its authority, a predecessor national authority exercising caretaker defense command under subsection (1) may call State forces into federal service without the legislative authorization otherwise required by §14.5, but only to the extent reasonably necessary to defend against invasion or armed attack.

(4) Defensive action under subsection (1) may occur outside the Republic's territory where reasonably necessary to repel, disrupt, or terminate the invasion or armed attack.

(5) The exercise of caretaker defense authority under this section, and its constitutional basis, must be published to the NRS as soon as operationally practicable.

Operational information may be classified only in accordance with Article X.

The joint Monitor panel has access to records necessary to assess compliance with this section and must report its findings in accordance with §19.3(3).

(6) A military operation commenced under caretaker authority may continue under its transitional authorization for no more than 60 days after the Legislature becomes constitutionally capable of exercising its authority, unless the Legislature authorizes its continuation under §2.2 or directs its cessation.

Within 14 days of assuming office, the Legat Consul must submit such an operation for legislative authorization or begin its orderly cessation.

Defense appropriations preserved under subsection (2) remain available for authorized continuing operations until superseded by lawful appropriation.

§19.4 — Pre-Constitutional Classified Documents

Predecessor classified material is subject to Article X from Day Zero.

The Legislature must establish an independent mechanism to review predecessor classified material under Article X. Until that mechanism becomes operational, a lawful temporary mechanism must exercise the review authority necessary to preserve constitutional compliance and access to review.

Material that does not satisfy Article X must be declassified and published to the NRS.

Any Inhabitant may obtain judicial review of a determination concerning predecessor classified material.

§19.5 — Pre-Existing Obligations

(1) Pre-existing social insurance programs continue without interruption during the constitutional transition, subject to subsequent legislation enacted under this Constitution.

(2) The Republic succeeds to the predecessor government's international legal relationships, including its treaties, financial commitments, and contractual obligations.

Where an inherited international obligation conflicts with this Constitution, the Republic must seek its renegotiation or lawful termination in accordance with §3.6.

Pending resolution, the Republic must honor the obligation to the extent required by international law, without requiring any constitutional officer to violate Article I or any non-derogable constitutional right.

(3) From Day Zero, an independent judicial forum remains continuously available to enforce Article I.

A temporary judicial institution may exercise only the authority necessary to preserve constitutional rights until the corresponding judiciary of the Republic becomes constitutionally capable of exercising that jurisdiction.

§19.6 — Transition Territories

(1) A political entity holding recognized State or equivalent constitutional status before ratification that elects to enter the Republic as a State is recognized as a State from Day Zero, with all rights and responsibilities established by this Constitution.

(2) Predecessor territories that do not enter the Republic as States are recognized as Territories from Day Zero.

Predecessor capital districts and special administrative regions are likewise recognized as Territories, subject to the provisions of Article XV.

(3) A predecessor political entity may elect to enter the Republic as a Territory by a majority vote of its existing legislative body, regardless of its eligibility for Statehood.

(4) Before entry into the Republic, a predecessor State or Territory may voluntarily subdivide in accordance with its lawful procedures.

The resulting entities are considered separately for admission under this Constitution.

§19.7 — Founding Registers and Monetary Continuity

(1) The interim Elections Panel must prepare the initial Candidate Registers in accordance with the applicable constitutional eligibility requirements.

(2) The founding register of recognized Indigenous nations is established from the authoritative predecessor records and published to the NRS.

The compilation is ministerial and does not alter the recognition or standing of any Indigenous nation.

(3) Until the Monetary Authority becomes constitutionally capable of exercising its functions, a lawful temporary institution may perform the certification functions necessary to preserve monetary continuity.

The Monetary Authority must be constituted in accordance with §12.1.a.

§19.8 — Transitional Accountability Mechanism

Where documented violations by a predecessor government warrant transitional accountability, the Legislature may establish a temporary, non-criminal Transitional Accountability Mechanism by a two-thirds vote of both chambers.

The establishing statute must define the mechanism's jurisdiction, powers, procedures, and duration. Any expansion of its jurisdiction or powers requires the same legislative approval.

The mechanism operates consistently with Article I and terminates upon expiration of its statutory mandate.

§19.9 — Required Institutions and Temporary Continuity

(1) Where this Constitution requires the establishment of a permanent institution to exercise a constitutional function, the responsible authorities must provide for its establishment in accordance with law.

(2) A lawful temporary institution may exercise only the functions necessary to preserve constitutional continuity or rights until the corresponding permanent institution becomes constitutionally capable of exercising those functions.

A failure to establish a constitutionally required institution is subject to judicial review. A court of competent jurisdiction may compel the responsible authorities to fulfill their constitutional obligations and authorize temporary measures necessary to preserve continuity or rights.

(3) The Legislature must establish by statute the transition from predecessor voting infrastructure to the National Voting System without interrupting democratic participation.

§19.10 — Founding Senate and Judicial Classes

(1) At the first Senate seating, senators are assigned to three approximately equal cohorts by public lot: the first cohort serves an initial term of two years, the second four years, the third six years; thereafter all Senate terms are six years. The lot is conducted by the Elections Panel and published to the NRS before the first senators take the constitutional oath.

(2) At founding, the initial Supreme Court justices are assigned as evenly as practicable by public lot administered by the Elections Panel to three classes. The first class serves an initial term of four years, the second an initial term of eight years, and the third an initial term of twelve years. Thereafter terms follow §4.3 and §4.4. Founding service under this subsection constitutes the justice's single term for purposes of those provisions.

Article XX — Associated Communities

§20.1 — Nature of Associated Community Status

An Associated Community is a sovereign political community that remains outside the Republic in a consensual compact relationship with it under this Article. Associated Community status is available to recognized Indigenous nations under Article XVI and to any independent nation outside the Republic.

§20.2 — Compact Terms and Equal Sovereignty

The Republic and an Associated Community are equal sovereign parties to their compact.

The compact may establish representation, consultation, and participation arrangements between the parties.

The Republic may not require an Associated Community to adopt a particular form of government as a condition of association.

§20.3 — Compact Conditions and Compliance

(1) No compact may be entered or ratified with an entity whose governance practices include, authorize, or systematically permit violations of the non-derogable rights in §1.16.a against any person within its jurisdiction.

(2) Allegations of violations of §1.16.a arising under an association compact is subject to review through the compact's independent arbitration mechanism.

The compact may be suspended upon a preliminary determination by that mechanism that the violations meet the standard established in subsection (1).

The compact must provide procedures for urgent review and resolution of such disputes.

(3) The arbitration panel may terminate a compact on confirmed violations not remedied within the period the compact specifies.

(4) Where an Associated Community's territory includes Indigenous nations with pre-existing governance relationships, the compact must address them and may not require their governance arrangements to be eliminated or diminished.

(5) The effects of a compact's suspension are governed by its terms, without prejudice to obligations independently binding upon either party under international law.

§20.4 — Sovereign Mobility

An Associated Community may terminate its compact through its own democratic or traditional governance process. The Republic may neither prevent nor penalize that decision.

Termination takes effect in accordance with the compact's agreed procedures, upon written notice registered to the NRS.

The termination procedures may not permit either party to compel the continued association of an unwilling sovereign community.

§20.5 — Reciprocal Obligations and Review

Each compact must define the reciprocal obligations of the parties and establish an independent arbitration mechanism.

Either party may request a review of the compact by written notice registered to the NRS. Review procedures are established by the compact.

§20.6 — Compact Ratification

The Legat Consul negotiates and concludes compacts with Associated Communities, subject to Senate ratification under §3.6.

§20.7 — Compact Continuity

An association compact remains binding upon the Republic notwithstanding a change of government.

Amendment or renegotiation of the compact proceeds in accordance with its terms and the applicable constitutional treaty procedures.